

**SOLICITATION, OFFER, AND AWARD**

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

DX-A1

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2. CONTRACT NUMBER

3. SOLICITATION NUMBER

N0042126R3005

4. TYPE OF SOLICITATION

- ☐ SEALED BID (IFB) INVITATION FOR BID  
☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL

5. DATE ISSUED

17 Apr 2026

6. REQUISITION/PURCHASE NUMBER

7. ISSUED BY

CODE

N00421

NAVAL AIR WARFARE CENTER AIR DIV  
BUILDING 439 SUITE F, 47110 LILJENCRANTZ ROAD UNIT 7  
PATUXENT RIVER, MD 20670-1545  
UNITED STATES  
Hannah Farrell, Email: hannah.r.farrell.civ@us.navy.mil Telephone: 240-577-9210

8. ADDRESS OFFER TO (If other than item 7)

**NOTE:** In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and 1 copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in \_\_\_\_\_ until 01:00 PM local time 18 May 2026  
(Hour) (Date)

**CAUTION** - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

|                           |                |                                 |          |           |                                  |
|---------------------------|----------------|---------------------------------|----------|-----------|----------------------------------|
| 10. FOR INFORMATION CALL: | A. NAME        | B. TELEPHONE (NO COLLECT CALLS) |          |           | C. EMAIL ADDRESS                 |
|                           | Hannah Farrell | AREA CODE                       | NUMBER   | EXTENSION | hannah.r.farrell.civ@us.navy.mil |
|                           |                | 240                             | 577-9210 |           |                                  |

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**OFFER (Must be fully completed by offeror)****NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within \_\_\_\_\_ calendar days (60 calendar days unless a different

period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

|                                                                                                                                                                 |                                                                                            |                      |                                                                              |                   |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|----------------------|------------------------------------------------------------------------------|-------------------|
| 13. DISCOUNT FOR PROMPT PAYMENT<br>(See Section I, Clause Number 52.232-8)                                                                                      | 10 CALENDAR DAYS (%)                                                                       | 20 CALENDAR DAYS (%) | 30 CALENDAR DAYS (%)                                                         | CALENDAR DAYS (%) |
| 14. ACKNOWLEDGMENT OF AMENDMENTS<br>(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated): | AMENDMENT NUMBER                                                                           | DATE                 | AMENDMENT NUMBER                                                             | DATE              |
| 15A. NAME AND ADDRESS OF OFFEROR                                                                                                                                | CODE                                                                                       | FACILITY             | 16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER<br>(Type or print) |                   |
| 15B. TELEPHONE NUMBER                                                                                                                                           | 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE. |                      | 17. SIGNATURE                                                                | 18. OFFER DATE    |
| AREA CODE                                                                                                                                                       | NUMBER                                                                                     | EXTENSION            |                                                                              |                   |

**AWARD (To be completed by Government)**

|                                                                                                                                                                                        |                                                                                  |                                  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------|----------------------------------|
| 19. ACCEPTED AS TO ITEMS NUMBERED                                                                                                                                                      | 20. AMOUNT                                                                       | 21. ACCOUNTING AND APPROPRIATION |
| 22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT:<br><input type="checkbox"/> 10 U.S.C. 3204(a) <input type="checkbox"/> 41 U.S.C. 3304(a) ( ) | 23. SUBMIT INVOICES TO ADDRESS SHOWN IN<br>(4 copies unless otherwise specified) | ITEM                             |
| 24. ADMINISTERED BY (If other than Item 7)                                                                                                                                             | 25. PAYMENT WILL BE MADE BY                                                      | CODE                             |
| 26. NAME OF CONTRACTING OFFICER (Type or print)                                                                                                                                        | 27. UNITED STATES OF AMERICA<br>(Signature of Contracting Officer)               | 28. AWARD DATE                   |

**IMPORTANT** - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

AUTHORIZED FOR LOCAL REPRODUCTION  
Previous edition is unusable

**STANDARD FORM 33 (REV. 12/2022)**  
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

## Section A - Solicitation/Contract Form

ASI Secure Executive Network Software Support (SENSS)

Product Service Code: K016

### 1. Government Points of Contact

Contract Specialist: Hannah Farrell  
Phone: 240-577-9210  
Email: hannah.r.farrell.civ@us.navy.mil

Contracting Officer: Amy G. Davis  
Phone: 410-394-1524  
Email: amy.g.davis.civ@us.navy.mil

Procuring Contracting Officer: Kristen Ferro  
Phone: 240-808-9963  
Email: kristen.w.ferro.civ@us.navy.mil

### 2. Place of Performance

51% Government Site NAWCAD Webster Outlying Field (WOLF), St. Inigoes, MD  
49% Contractor Site Within 50 drivable miles of NAWCAD WOLF, St. Inigoes, MD

### 3. Competition

This fair opportunity Request for Offer (RFO) is an unrestricted competition. Only contractors with a current SeaPort NxG Multiple Award Contract (MAC) will be considered for Task Order (TO) award.

### 4. North American Industry Classification Systems (NAICS)

The NAICS for this effort is 541330 - Engineering Services with a Small Business size standard of \$47M (in accordance with Exception 1).

### 5. Product Service Code (PSC)

This TO will have an associated PSC of K016: Modification of Equipment - Aircraft Components and Accessories.

### 6. Contract Type

The TO resulting from this RFO will be in accordance with the terms and conditions of the SeaPort NxG MAC. Therefore, all terms and conditions of the SeaPort NxG MAC are hereby fully and expressly incorporated into this TO.

Only clauses and provisions requiring fill-ins or unique to this TO have been included in this TO.

This TO will utilize Cost-Plus-Fixed-Fee (CPFF) CLINs for Labor, Cost Reimbursement (non-fee bearing) for Other Direct Costs (ODCs) (Travel and Material), and Not Separately Priced (NSP) for Data and Contract Acquired Property (CAP). The line items are:

- (a) The 6000 series CLINs are CPFF
- (b) The 7000 series CLINs are Cost-Reimbursable and Non-Fee Bearing
- (c) The 8000 series CLINs are NSP

## 7. Security Clearance

The Contractor shall be responsible for employing personnel having at least the minimum level of security clearance identified in Section C, Statement of Work (SOW) paragraph 3.2.3.

## 8. Service Contract Labor Standards (SCLS)

This RFO, and the resulting TO, will be subject to the Service Contract Act (SCA) of 1965, as amended, and to FAR clause 52.222-41, Service Contract Labor Standards, contained in Section I of this solicitation.

## Section B - Supplies or Services & Prices or Costs

### Additional Information/Notes

Note: All terms and conditions of Section B of the SeaPort NxG MAC are hereby fully and expressly incorporated into this Request for Offer (RFO) and resulting Task Order (TO) in addition to the following:

| Item                  | Supplies/Service                                                                                                                                                                                                                                                                           | Quantity | Unit | Unit Price | Amount |
|-----------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 6001                  | (Base Year) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1(a), 3.3.2(a), 3.3.3(a), and 3.3.4(a) - Procurement (PROC). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                                                               | 1        | Lot  |            |        |
| 6002                  | (Base Year) Labor in accordance with Section J, Attachment 01 Statement of Work paragraphs 3.3.1(b), 3.3.2(b), 3.3.3(b), and 3.3.4(b) - Operations and Maintenance (O&M). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                                                       | 1        | Lot  |            |        |
| 6003                  | (Base Year) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1(c), 3.3.2(c), 3.3.3(c), and 3.3.4(c) - Foreign Military Sales (FMS). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                                                     | 1        | Lot  |            |        |
| 6004                  | (Base Year) Labor in accordance with Section J, Attachment 01 Statement of Work Section C, Statement of Work (SOW) paragraphs 3.3.1(d), 3.3.2(d), 3.3.3(d), and 3.3.4(d) - Research, Development, Test, and Evaluation (RDT&E). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee | 1        | Lot  |            |        |
| 6005                  | (Base Year) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1(e), 3.3.2(e), 3.3.3(e), and 3.3.4(e) - Working Capital Fund (WCF). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                                                       | 1        | Lot  |            |        |
| Option Line Item 6101 | (Option Year 1) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1(a), 3.3.2(a), 3.3.3(a), and 3.3.4(a) - Procurement (PROC). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                                                           | 1        | Lot  |            |        |
| Option Line Item 6102 | (Option Year 1) Labor in accordance with Section J, Attachment 01 Statement of Work paragraphs 3.3.1(b), 3.3.2(b), 3.3.3(b), and 3.3.4(b) - Operations and Maintenance (O&M). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                                                   | 1        | Lot  |            |        |

|                       |                                                                                                                                                                                                                                                                    |   |     |  |  |
|-----------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---|-----|--|--|
| Option Line Item 6103 | (Option Year 1) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1 (c), 3.3.2(c), 3.3.3(c), and 3.3.4(c) - Foreign Military Sales (FMS). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                        | 1 | Lot |  |  |
| Option Line Item 6104 | (Option Year 1) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1 (d), 3.3.2(d), 3.3.3(d), and 3.3.4(d) - Research, Development, Test, and Evaluation (RDT&E). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee | 1 | Lot |  |  |
| Option Line Item 6105 | (Option Year 1) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1 (e), 3.3.2(e), 3.3.3(e), and 3.3.4(e) - Working Capital Fund (WCF). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                          | 1 | Lot |  |  |
| Option Line Item 6201 | (Option Year 2) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1 (a), 3.3.2(a), 3.3.3(a), and 3.3.4(a) - Procurement (PROC). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                                  | 1 | Lot |  |  |
| Option Line Item 6202 | (Option Year 2) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1 (b), 3.3.2(b), 3.3.3(b), and 3.3.4(b) - Operation & Maintenance (O&M). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                       | 1 | Lot |  |  |
| Option Line Item 6203 | (Option Year 2) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1 (c), 3.3.2(c), 3.3.3(c), and 3.3.4(c) - Foreign Military Sales (FMS). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                        | 1 | Lot |  |  |
| Option Line Item 6204 | (Option Year 2) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1 (d), 3.3.2(d), 3.3.3(d), and 3.3.4(d) - Research, Development, Test, & Evaluation (RDT&E). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee   | 1 | Lot |  |  |
| Option Line Item 6205 | (Option Year 2) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1 (e), 3.3.2(e), 3.3.3(e), and 3.3.4(e) - Working Capital Funds (WCF). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                         | 1 | Lot |  |  |
| Option Line Item 6301 | (Option Year 3) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1 (a), 3.3.2(a), 3.3.3(a), and 3.3.4(a) - Procurement (PROC). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                                  | 1 | Lot |  |  |

|                          |                                                                                                                                                                                                                                                                 |   |     |  |  |
|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---|-----|--|--|
| Option Line Item<br>6302 | (Option Year 3) Labor in accordance with Section J, Attachment 01 Statement of Work paragraphs 3.3.1(b), 3.3.2(b), 3.3.3(b), and 3.3.4(b) - Operations and Maintenance (O&M). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                        | 1 | Lot |  |  |
| Option Line Item<br>6303 | (Option Year 3) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1(c), 3.3.2(c), 3.3.3(c), and 3.3.4(c) - Foreign Military Sales (FMS). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                      | 1 | Lot |  |  |
| Option Line Item<br>6304 | (Option Year 3) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1(d), 3.3.2(d), 3.3.3(d), and 3.3.4(d) - Research, Development, Test & Evaluation (RDT&E). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee  | 1 | Lot |  |  |
| Option Line Item<br>6305 | (Option Year 3) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1(e), 3.3.2(e), 3.3.3(e), and 3.3.4(e) - Working Capital Funds (WCF). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                       | 1 | Lot |  |  |
| Option Line Item<br>6401 | (Option Year 4) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1(a), 3.3.2(a), 3.3.3(a), and 3.3.4(a) - Procurement (PROC). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                                | 1 | Lot |  |  |
| Option Line Item<br>6402 | (Option Year 4) Labor in accordance with Section J, Attachment 01 Statement of Work paragraphs 3.3.1(b), 3.3.2(b), 3.3.3(b), and 3.3.4(b) - Operations and Maintenance (O&M). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                        | 1 | Lot |  |  |
| Option Line Item<br>6403 | (Option Year 4) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1(c), 3.3.2(c), 3.3.3(c), and 3.3.4(c) - Foreign Military Sales (FMS). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                      | 1 | Lot |  |  |
| Option Line Item<br>6404 | (Option Year 4) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1(d), 3.3.2(d), 3.3.3(d), and 3.3.4(d) - Research, Development, Test, & Evaluation (RDT&E). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee | 1 | Lot |  |  |
| Option Line Item<br>6405 | (Option Year 4) Labor in accordance with Section J, Attachment 01 Statement of Work (SOW) paragraphs 3.3.1(e), 3.3.2(e), 3.3.3(e), and 3.3.4(e) - Working Capital Funds (WCF). CPFF Term.<br><br>Pricing Arrangement: Cost Plus Fixed Fee                       | 1 | Lot |  |  |

|                       |                                                                                                                                                      |   |     |  |  |
|-----------------------|------------------------------------------------------------------------------------------------------------------------------------------------------|---|-----|--|--|
| 7001                  | (Base Year) ODC in support of Labor CLIN 6001 - Procurement (PROC). COST.<br><br>Pricing Arrangement: Cost No Fee                                    | 1 | Lot |  |  |
| 7002                  | (Base Year) ODC in support of Labor CLIN 6002 - Operations & Maintenance (O&M). COST.<br><br>Pricing Arrangement: Cost No Fee                        | 1 | Lot |  |  |
| 7003                  | (Base Year) ODC in support of Labor CLIN 6003 - Foreign Military Sales (FMS). COST.<br><br>Pricing Arrangement: Cost No Fee                          | 1 | Lot |  |  |
| 7004                  | (Base Year) ODC in support of Labor CLIN 6004 - Research, Development, Test, and Evaluation (RDT&E). COST.<br><br>Pricing Arrangement: Cost No Fee   | 1 | Lot |  |  |
| 7005                  | (Base Year) ODC in support of Labor CLIN 6005 - Working Class Funds (WCF). COST.<br><br>Pricing Arrangement: Cost No Fee                             | 1 | Lot |  |  |
| Option Line Item 7101 | (Option Year 1) ODC in support of Labor CLIN 6101 - Procurement (PROC) - COST.<br><br>Pricing Arrangement: Cost No Fee                               | 1 | Lot |  |  |
| Option Line Item 7102 | (Option Year 1) ODC in support of Labor CLIN 6102 - Operation & Maintenance (O&M) - COST.<br><br>Pricing Arrangement: Cost No Fee                    | 1 | Lot |  |  |
| Option Line Item 7103 | (Option Year 1) ODC in support of Labor CLIN 6103 - Foreign Military Sales (FMS) - COST.<br><br>Pricing Arrangement: Cost No Fee                     | 1 | Lot |  |  |
| Option Line Item 7104 | (Option Year 1) ODC in support of Labor CLIN 6104 - Research, Development, Test, & Evaluation (RDT&E) - COST<br><br>Pricing Arrangement: Cost No Fee | 1 | Lot |  |  |
| Option Line Item 7105 | (Option Year 1) ODC in support of Labor CLIN 6105 - Working Class Funds (WCF) - COST<br><br>Pricing Arrangement: Cost No Fee                         | 1 | Lot |  |  |

|                          |                                                                                                                                                             |   |     |  |  |
|--------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|---|-----|--|--|
| Option Line Item<br>7201 | (Option Year 2) ODC in support of Labor CLIN 6201 -<br>Procurement (PROC) - COST.<br><br>Pricing Arrangement: Cost No Fee                                   | 1 | Lot |  |  |
| Option Line Item<br>7202 | (Option Year 2) ODC in support of Labor CLIN 6202 -<br>Operation & Maintenance (O&M) - COST.<br><br>Pricing Arrangement: Cost No Fee                        | 1 | Lot |  |  |
| Option Line Item<br>7203 | (Option Year 2) ODC in support of Labor CLIN 6203 -<br>Foreign Military Sales (FMS) - COST.<br><br>Pricing Arrangement: Cost No Fee                         | 1 | Lot |  |  |
| Option Line Item<br>7204 | (Option Year 2) ODC in support of Labor CLIN 6204 -<br>Research, Development, Test, & Evaluation (RDT&E) -<br>COST.<br><br>Pricing Arrangement: Cost No Fee | 1 | Lot |  |  |
| Option Line Item<br>7205 | (Option Year 2) ODC in support of Labor CLIN 6205 -<br>Working Capital Funds (WCF) - COST.<br><br>Pricing Arrangement: Cost No Fee                          | 1 | Lot |  |  |
| Option Line Item<br>7301 | (Option Year 3) ODC in support of Labor CLIN 6301 -<br>Procurement (PROC) - COST.<br><br>Pricing Arrangement: Cost No Fee                                   | 1 | Lot |  |  |
| Option Line Item<br>7302 | (Option Year 3) ODC in support of Labor CLIN 6302 -<br>Operation & Maintenance (O&M) - COST.<br><br>Pricing Arrangement: Cost No Fee                        | 1 | Lot |  |  |
| Option Line Item<br>7303 | (Option Year 3) ODC in support of Labor CLIN 6303 -<br>Foreign Military Sales (FMS) - COST.<br><br>Pricing Arrangement: Cost No Fee                         | 1 | Lot |  |  |
| Option Line Item<br>7304 | (Option Year 3) ODC in support of Labor CLIN 6304 -<br>Research, Development, Test, & Evaluation (RDT&E) -<br>COST.<br><br>Pricing Arrangement: Cost No Fee | 1 | Lot |  |  |
|                          |                                                                                                                                                             |   |     |  |  |



|                          |                                                                                                                                                             |   |     |  |  |
|--------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|---|-----|--|--|
| Option Line Item<br>7305 | (Option Year 3) ODC in support of Labor CLIN 6305 -<br>Working Capital Funds (WCF) - COST.<br><br>Pricing Arrangement: Cost No Fee                          | 1 | Lot |  |  |
| Option Line Item<br>7401 | (Option Year 4) ODC in support of Labor CLIN 6401 -<br>Procurement (PROC). COST.<br><br>Pricing Arrangement: Cost No Fee                                    | 1 | Lot |  |  |
| Option Line Item<br>7402 | (Option Year 4) ODC in support of Labor CLIN 6402 -<br>Operation & Maintenance (O&M). COST.<br><br>Pricing Arrangement: Cost No Fee                         | 1 | Lot |  |  |
| Option Line Item<br>7403 | (Option Year 4) ODC in support of Labor CLIN 6403 -<br>Foreign Military Sales (FMS). COST.<br><br>Pricing Arrangement: Cost No Fee                          | 1 | Lot |  |  |
| Option Line Item<br>7404 | (Option Year 4) ODC in support of Labor CLIN 6404 -<br>Research, Development, Test, & Evaluation (RDT&E).<br>COST.<br><br>Pricing Arrangement: Cost No Fee  | 1 | Lot |  |  |
| Option Line Item<br>7405 | (Option Year 4) ODC in support of Labor CLIN 6405 -<br>Working Capital Funds (WCF). COST.<br><br>Pricing Arrangement: Cost No Fee                           | 1 | Lot |  |  |
| 8000                     | (Base Year) Not Separately Priced (NSP) Data in support of<br>Base Year Labor CLINs.<br><br>Pricing Arrangement: Cost No Fee                                | 1 | Lot |  |  |
| 8001                     | (Base Year) Not Separately Priced (NSP) Contractor<br>Acquired Property (CAP) in support of Base Year ODC<br>CLINs.<br><br>Pricing Arrangement: Cost No Fee | 1 | Lot |  |  |
| Option Line Item<br>8100 | (Option Year 1) Not Separately Priced (NSP) Data in support<br>of Option Year 1 Labor CLINs.<br><br>Pricing Arrangement: Cost No Fee                        | 1 | Lot |  |  |
| Option Line Item<br>8101 | (Option Year 1) Not Separately Priced (NSP) Contractor<br>Acquired Property (CAP) in support of Option Year 1 ODC<br>CLINs                                  | 1 | Lot |  |  |

|                       |                                                                                                                                                               |   |     |  |  |
|-----------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|---|-----|--|--|
|                       | Pricing Arrangement: Cost No Fee                                                                                                                              |   |     |  |  |
| Option Line Item 8200 | (Option Year 2) Not Separately Priced (NSP) Data in support of Option Year 2 Labor CLINs.<br><br>Pricing Arrangement: Cost No Fee                             | 1 | Lot |  |  |
| Option Line Item 8201 | (Option Year 2) Not Separately Priced (NSP) Contractor Acquired Property (CAP) in support of Option Year 2 ODC CLINs.<br><br>Pricing Arrangement: Cost No Fee | 1 | Lot |  |  |
| Option Line Item 8300 | (Option Year 3) Not Separately Priced (NSP) Data in support of Option Year 3 Labor CLINs.<br><br>Pricing Arrangement: Cost No Fee                             | 1 | Lot |  |  |
| Option Line Item 8301 | (Option Year 3) Not Separately Priced (NSP) Contractor Acquired Property (CAP) in support of Option Year 3 ODC CLINs.<br><br>Pricing Arrangement: Cost No Fee | 1 | Lot |  |  |
| Option Line Item 8400 | (Option Year 4) Not Separately Priced (NSP) Data in support of Option Year 4 Labor CLINs.<br><br>Pricing Arrangement: Cost No Fee                             | 1 | Lot |  |  |
| Option Line Item 8401 | (Option Year 4) Not Separately Priced (NSP) Contractor Acquired Property (CAP) in support of Option Year 4 ODC CLINs.<br><br>Pricing Arrangement: Cost No Fee | 1 | Lot |  |  |

**Additional Regulation or Supplemental Clauses Incorporated by Full Text****BTXT.211-9503 LEVEL OF EFFORT (COST REIMBURSEMENT) (NAVAIR)****(Dec 2012)**

(a) The level of effort estimated to be ordered during the term of this contract/order is **723,880** man-hours of direct labor including authorized subcontract labor, if any. The contractor shall not, under any circumstances, exceed one hundred (100%) percent of the total level of effort specified in the contract/order. The estimated composition of the total man-hours of direct labor by classification is as follows:

| BASE YEAR | OPTION YR 1 | OPTION YR 2 | OPTION YR 3 | OPTION YR 4 | TOTAL HOURS |
|-----------|-------------|-------------|-------------|-------------|-------------|
| 144,136   | 144,136     | 144,136     | 145,576     | 145,896     | 723,880     |

\* denotes Key Personnel labor categories

(b) FAR Clause 52.232-20, "Limitation of Cost" applies to fully funded orders and FAR Clause 52.232-22, "Limitation of Funds" applies to incrementally funded orders. Nothing in this clause amends the rights or responsibilities of the parties hereto under either of those two clauses. In addition, the notifications required by this clause are separate and distinct from any specified in either FAR Clause 52.232-20 or FAR Clause 52.232-22.

(c) In the event that less than one hundred (100%) percent of the established level of effort of the contract/order is actually expended by the end of the performance period, the Government shall have the option of:

(1) Requiring the Contractor to continue performance, subject to the provisions of the FAR Clause 52.232-20 or 52.232-22, as applicable, until the effort expended equals 100% of the established Level of Effort; or

(2) Effecting a reduction in the fixed fee by the percentage by which the total expended man-hours is less than one hundred (100%) percent of the established Level of Effort.

(d) The contractor agrees that effort performed in fulfillment of level of effort obligations under this contract shall include only verifiable effort in direct support of the work specified. It shall not include efforts such as work performed in transit to or from an employee's usual workplace, work during lunchtime activities, or effort performed at other non-work locations.

(e) In performing the contract/order, the contractor may use any reasonable combination of hours for the labor categories in support of section C of this contract/order.

## Section C - Description/Specifications/Statement of Work

Note: All terms and conditions of Section C of the SeaPort NxG MAC are hereby fully and expressly incorporated into this Request for Offer (RFO) and resulting Task Order (TO) in addition to the following:

Cost Plus Fixed Fee (CPFF) Labor CLINs (6000 Series CLINs): The Contractor shall provide services in accordance with Section J, Attachment 01 Statement of Work (SOW), Attachment 01. Contract services shall be performed in accordance with the SOW.

Other Direct Cost (ODC) CLINs (7000 Series CLINs): The Contractor shall provide Other Direct Costs (ODCs) in accordance with Section J, Attachment 01 SOW, Paragraph 3.1.5; CTXT.242-9520 Procedures and Approvals Required Prior to Incurring Direct Materials Costs; and CTXT. 232-9509 Travel Approval and Reimbursement Procedures.

Not Separately Priced (NSP) Data CLINs (8000 Series CLINs): The data to be furnished hereunder shall be in accordance with Exhibit A, DD1423, Contract Data Requirements list (CDRLs) and Section C, SOW.

NSP Contractor Acquired Property (CAP) CLINs (8000 Series CLINs): The items(s) to be furnished hereunder shall be marked in accordance with Section J, Attachment 01 SOW and DFARS PGI 245.402.

### Requirements

See Section J, Attachment 01 Statement of Work (SOW)

#### Additional Regulation or Supplemental Clauses Incorporated by Full Text

##### CTXT.237-9501 ADDITION OR SUBSTITUTION OF KEY PERSONNEL (SERVICES) (NAVAIR) (Feb 2024)

(a) A requirement of this contract is to maintain stability of personnel proposed in order to provide quality services. The contractor agrees to assign only those key personnel whose resumes were submitted and approved, and who are necessary to fulfill the requirements of the effort. The contractor agrees to assign to any effort requiring non-key personnel only personnel who meet or exceed the applicable labor category descriptions. No substitution or addition of personnel shall be made except in accordance with this clause.

(b) If personnel for whatever reason become unavailable for work under the contract for a continuous period exceeding thirty (30) working days, or are expected to devote substantially less effort to the work than indicated in the proposal, the contractor shall propose a substitution to such personnel, in accordance with paragraph (d) below.

(c) The contractor agrees that during the first 12 months of the task order, no key personnel substitutions or additions will be made unless necessitated by compelling reasons including, but not limited to: an individual's illness, death, termination of employment, declining an offer of employment (for those individuals proposed as contingent hires), or family friendly leave. In such an event, the contractor must promptly provide the information required by paragraph (d) below to the Contracting Officer for approval prior to the substitution or addition of key personnel.

(d) All proposed substitutions shall be submitted, in writing, to the Contracting Officer at least fifteen (15) days (thirty (30) days if a security clearance must be obtained) prior to the proposed substitution. Each request shall provide a detailed explanation of the circumstances necessitating the proposed substitution, a complete resume for the proposed substitute, information regarding the full financial impact of the change, and any other information required by the Contracting Officer to approve or disapprove the proposed substitution. All proposed key personnel substitutes (no matter when they are proposed during the performance period) shall have qualifications that at a minimum meet contract requirements for the applicable labor category, except that substitutes for a key personnel position that exceed the minimum contract requirement for the applicable labor category shall also exceed the minimum qualification requirements for the applicable labor category.

(e) In the event a requirement to increase the specified level of effort for a designated labor category, but not the overall level of effort of the contract occurs, the offeror shall submit to the Contracting Officer a written request for approval to add personnel to the designated labor category. The information required is the same as that required in paragraph (d) above.

(f) The Contracting Officer shall evaluate requests for substitution and addition of personnel and promptly notify the offeror, in writing, of whether the request is approved or disapproved.

(g) If the Contracting Officer determines that suitable and timely replacement of personnel who have been reassigned, terminated or have otherwise become unavailable to perform under the contract is not reasonably forthcoming or that the resultant reduction of productive effort would impair the successful completion of the contract or the task order, the contract may be terminated by the Contracting Officer for default or for the convenience of the Government, as appropriate. Alternatively, at the Contracting Officer's discretion, if the Contracting Officer finds the contractor to be at fault for the condition, he may equitably adjust (downward) the contract price or fixed fee to compensate the Government for any delay, loss or damage as a result of the contractor's action.

(h) Noncompliance with the provisions of this clause will be considered a material breach of the terms and conditions of the contract for which the Government may seek any and all appropriate remedies including Termination for Default pursuant to FAR Clause 52.249-6, Alt IV, "Termination (Cost-Reimbursement)".

**CTXT.232-9509 TRAVEL APPROVAL AND REIMBURSEMENT PROCEDURES (NAVAIR) (Oct 2013)**

(a) General. Performance under this contract may require travel by Contractor personnel. If travel, domestic or overseas, is required, the Contractor is responsible for making all necessary arrangements for its personnel. These include but are not limited to: medical examinations, immunizations, passports/visas/etc., and security clearances.

(b) Travel Approval Process. Prior approval is required for all travel under this contract. Travel shall be reviewed and approved /disapproved as follows:

(1) The Contractor shall provide the Contracting Officer's Representative (COR) a written request for authorization to travel at least 30 days in advance of the required travel date, when possible. The request should include: purpose of travel, location, travel dates, number of individuals traveling, and all estimated costs associated with the travel (e.g., lodging, meals, transportation costs, incidental expenses, etc.).

(2) The COR will review the travel request and provide, in writing, an approval or disapproval of the travel request to the Contractor and the Procuring Contracting Officer.

(c) Travel Policy.

(1) Travel arrangements shall be planned in accordance with the Federal Travel regulations, prescribed by the General Services Administration for travel in the conterminous 48 United States, (hereinafter the FTR) and the Joint Travel Regulation, Volume 2, DoD Civilian Personnel, Appendix A, prescribed by the Department of Defense (hereinafter the JTR).

(2) The Government will reimburse the Contractor for allowable travel costs incurred by the Contractor in performance of the contract in accordance with FAR Subpart 31.2.

(3) For purposes of reimbursement of travel expenses, the Contractor's official station is defined as within 50 miles of the Contractor's regular work site. (If Contractor has more than one regular work site, the official station is defined as within 50 miles of each of its regular work sites.)

(4) The Contractors documentation for the reimbursement of travel costs (e.g., receipts) shall be governed as set forth in FAR Subpart 31.2, the FTR, and the JTR.

(5) Car Rental for a team on temporary duty (TDY) at one site will be allowed provided that only one car is rented for every four (4) members of the TDY team. In the event that less than four (4) persons comprise the TDY team, car rental will be allowed if necessary to complete the mission required.

(6) Whenever work assignments require TDY aboard a Government ship, the Contractor will be reimbursed at the per diem identified in the JTR.

**CTXT.211-9510 CONTRACTOR EMPLOYEES (NAVAIR) (May 2011)**

(a) In all situations where contractor personnel status is not obvious, all contractor personnel are required to identify themselves to avoid creating an impression to the public, agency officials, or Congress that such contractor personnel are Government officials. This can occur during meeting attendance, through written (letter or email) correspondence or verbal discussions (in person or telephonic), when making presentations, or in other situations where their contractor status is not obvious to third parties. This list is not exhaustive. Therefore, the contractor employee(s) shall:

(1) Not by word or deed give the impression or appearance of being a Government employee;

(2) Wear appropriate badges visible above the waist that identify them as contractor employees when in Government spaces, at a Government-sponsored event, or an event outside normal work spaces in support of the contract/order;

(3) Clearly identify themselves as contractor employees in telephone conversations and in all formal and informal written and electronic correspondence. Identification shall include the name of the company for whom they work;

(4) Identify themselves by name, their company name, if they are a subcontractor the name of the prime contractor their company is supporting, as well as the Government office they are supporting when participating in meetings, conferences, and other interactions in which all parties are not in daily contact with the individual contractor employee; and

(5) Be able to provide, when asked, the full number of the contract/order under which they are performing, and the name of the Contracting Officer's Representative.

(b) If wearing a badge is a risk to safety and/or security, then an alternative means of identification maybe utilized if endorsed by the Contracting Officer's Representative and approved by the Contracting Officer.

(c) The Contracting Officer will make final determination of compliance with regulations with regard to proper identification of contractor employees.

**CTXT.242-9520 PROCEDURES AND APPROVALS REQUIRED PRIOR TO INCURRING  
DIRECT MATERIAL COSTS**

**(Apr 2022)**

**(a) General.**

(1) These procedures apply to all ODC CLINs.

(2) Any material procured as a direct cost under this contract by the Contractor is subject to the requirements of the Federal Acquisition Regulation (FAR), the Defense Federal Acquisition Regulation Supplement (DFARS), the Navy Marine Corps Acquisition Regulation Supplement (NMCARS), and any other Department of Defense or Department of the Navy policies and procedures.

(3) Performance of this contract may require the contractor to procure material. If material incidental to performance of this service contract is required and will be a direct cost consistent with the contractor's disclosure statement, the Contractor shall follow the procedures outlined herein before making a purchase. No material item with a unit cost greater than the Simplified Acquisition Threshold (SAT) (FAR 2.101) may be procured under this contract. No single procurement with a total value, i.e., the total sum of all items, greater than the Truthful Cost or Pricing Data Act threshold (FAR 15.403-4(a)(1)) may be procured under this contract. Procurements shall not be split to circumvent these thresholds or the approval thresholds set forth in paragraph (b) below. Procurement of material that is not incidental to and necessary for contract performance, or approved in accordance with these procedures, may be determined to be an unallowable cost pursuant to FAR Part 31 and DFARS Part 231.

(b) Procedures. All material procurements to be directly charged to any ODC CLIN(s) of this contract are subject to the following review and/or approval procedures:

**(1) Approval Authorities.**

| <b><u>Notification Only (No Approval Required)</u></b>                                                                                                                          | <b><u>Contracting Officer Representative (COR) Approval</u></b>                                                                                                                                                    | <b><u>COR and Contracting Officer Approval</u></b>                                                                                                                                        |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Items listed in para. (c), excluding sole source procurements and software licenses, with a total cost of <u>less than or equal to the micro-purchase threshold (FAR 2.101)</u> | Items listed in para. (c), excluding sole source procurements and software licenses, with a <u>total cost greater than the micro-purchase threshold (FAR 2.101) but less than or equal to the SAT (FAR 2.101).</u> | Items listed in para. (c) with a total cost greater than [insert "the SAT (FAR 2.101)" OR a specific dollar value less than the SAT]. <u>total cost greater than the SAT (FAR 2.101).</u> |
|                                                                                                                                                                                 |                                                                                                                                                                                                                    | Items listed in para. (c) procured on a <u>sole source basis (regardless of dollar value)</u>                                                                                             |

|  |  |                                                               |
|--|--|---------------------------------------------------------------|
|  |  | Software licenses (regardless of dollar value)                |
|  |  | Any item not listed in para. (c) (regardless of dollar value) |

(2) Contractor Requests and Notifications. For all material procurements subject to these procedures, the Contractor shall submit a material procurement request (or notification, for procurements that do not require approval) that includes the following: 1) a list of the material items to be procured, 2) an explanation of the need for the material, 3) a listing of quotes received, 4) the reason for the selected source, and 5) the determination of price reasonableness. If the procurement is sole source to a particular supplier, the request shall also include the rationale for limiting the procurement to that supplier. When approval is required per paragraph (b)(1), the Contractor shall not proceed with the procurement until receiving approval. All requests requiring approval shall be submitted to the COR for disposition. For requests within the COR approval threshold, the COR will provide written approval or disapproval to the Contractor. For requests within the Contracting Officer's approval threshold, the COR will forward the request with a recommendation of approval or disapproval to the Contracting Officer. The Contracting Officer will provide written approval or disapproval to the COR and the Contractor. When approval is not required, the Contractor shall provide an email notification to the COR containing the required content prior to procuring the material.

(3) Urgent Requirements. For direct material procurements that require COR approval only, urgent requests may be verbally requested and verbally approved. A request is considered urgent when it is necessary for the Contractor to procure material to immediately respond to a requirement. If the COR concurs with the urgent nature of the request, verbal approval of the request will be provided to the Contractor. All urgent requests verbally approved by the COR shall be followed up with a Contractor email request to the COR within one business day of the verbal approval, containing the minimum content set forth in paragraph (b)(2) above and referencing the date of the verbal approval by the COR. The COR shall thereafter respond via email to provide written confirmation of the verbal approval.

(c) List of Applicable Materials:

Electronic Components and Material:

Adapters, Amplifiers, Antenna Mast, Antennas, Backshells, Batteries, Bridge, Cable Assemblies, Cables, Capacitors, Circuit Boards, Circuit Breakers, Charging Devices, Chassis, Chemicals, Cleaners, Communications Special Enclosures, Communicator Switch, Connectors, Converters, Crystals, Cryptographic Devices, Data Controllers, Desktop Computers, Diodes, Diplexers, Eliminators, Environmental Control Units, Fiber Optic Equipment, Fuses, Generators, Global Positions System, Handsets, Headsets, Hubs, Inductors, Inserts, Interface Cards, keyboards, Lamps/Bulbs, Laptop Personal Computers, Microphones, Modems, Modules, Monitors, Mouses, Multiplexers, Patch Cords, Power Distribution Unit, Power Supplies, Printers, Radios, Relays, Repair Material, Resistors, Radio Frequency (RF) Adapters, Routers, Secure Telephones, Secure Voice Adapter, Semi-Conductor Devices, Servers, Speakers, Splices, Switches, Telephones, Terminals, Test Equipment, Transformers, Transistors, Uninterruptible Power Supply (UPS), Video Equipment, Wires, and Work Stations.

Hardware:

Bolts, Boxes, Braces, Brackets, Brads, Cases, Conduits, Electrical Boxes, End Fittings, Face Plates, Fiberglass, Filters, Foam Inserts, Handles, Heat Shrink, Hinges, Interior/Exterior Mounts, Intermediate Distribution Frames, Metal (Various Gauge), Modification Equipment for Trailers and Vehicles, Nuts, Patch Panels, Plastic, Power Distribution Panels, Rack Assembly, Racks, Rivets, Rivnuts, Screws, Shelters (Hard & Soft), Shock Mounts, Slides, Storage Containers, Tents, Tool Kits, Washers, and Wood.

Miscellaneous Material:

Binders, Data Storage Medium, De-Greaser, Deliverable/Documentation Consumables, Dividers, Electronic Components Cleansing Material, Electronic Repair Services, Mylar, Paint, Shipping/Freight Supplies/Services, Solder, Vu-graph Supplies, and other materials reasonably related to the performance of this Contract.

Software:

Software Licenses (e.g., Word Processors, Spreadsheets, Database Managers, Utilities, Operating Systems, Graphics and Presentation Packages, Mail Systems, Network Handlers, Communications Packages, Media Converters, Customized Software, etc.).

Per DFARS 208.7402, if the required commercial software is available from the Department of Defense (DoD) inventory under an Enterprise Software Agreement (ESA), the software shall be purchased in accordance with the DoD Enterprise Software Initiative (ESI) unless a waiver is approved in accordance with DFARS Procedures, Guidance, and Information (PGI) 208.7403.

## Section D - Packaging and Marking

Note: All applicable provisions and clauses of Section D of the basic SeaPort-NxG MAC apply to this Task Order (TO) in addition to the following:

Cost Plus Fixed Fee (CPFF) Labor CLINs (6000 Series CLINs): Packaging and marking are not applicable to these CLINs.

Other Direct Costs (ODCs) CLINs (7000 Series CLINs): The material to be furnished hereunder shall be packaged, packed, and marked In Accordance With (IAW) DTXT.247-9508 Prohibition and Limitations For Packaging Materials (NAVAIR) (AUG 2019) and Exhibit A, Contract Data Requirements List (CDRL).

Not Separately Priced (NSP) Data CLINs (8000 Series CLINs): The data to be furnished hereunder shall be in accordance with Exhibit A, CDRLs and packaged and marked in accordance with DTXT.247-9508 Prohibition and Limitations for Packaging Materials, and DTXT.247-9514 Technical Data Packing Instructions.

NSP Contractor Acquired Property (CAP) CLINs (8000 Series CLINs): The item(s) to be furnished hereunder shall be marked accordance with Section J, Attachment 01 SOW.

### Additional Regulation or Supplemental Clauses Incorporated by Full Text

#### DTXT.247-9507 PACKAGING AND MARKING OF REPORTS (NAVAIR)

(Oct 2021)

(a) All unclassified data shall be prepared for shipment in accordance with best commercial practice. Classified reports, data and documentation, if any, shall be prepared for shipment in accordance with the National Industry Security Program Operating Manual, 32 CFR Part 117.

(b) The contractor shall prominently display on the cover of each report the following information:

- (1) Name and business address of contractor.
- (2) Contract Number/Delivery/Task order number.
- (3) Contract/Delivery/Task order dollar amount.
- (4) Whether the contract was competitively or non-competitively awarded.
- (5) Name of sponsoring individual.
- (6) Name and address of requiring activity.

#### DTXT.247-9508 PROHIBITION AND LIMITATIONS FOR PACKAGING MATERIALS (NAVAIR) (Aug 2019)

The use of loose fill materials, asbestos, excelsior, newspaper and shredded paper (all types) are prohibited. In addition, all Wood Packaging Materials (WPM) shall be heat treated or chemically treated in accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15:2009, "Regulation of Wood Packaging Material in International Trade."

#### DTXT.247-9514 TECHNICAL DATA PACKING INSTRUCTIONS (NAVAIR)

(Feb 2025)

Technical Data and Information produced or handled in support of this contract shall be packed and packaged for domestic shipment in accordance with best commercial practices. The package or envelope should be clearly marked with any special markings specified in this contract (or delivery/task order), e.g., Contract Number, CLIN, Device No., and document title must be on the outside of the package. Classified reports, data and documentation, if applicable, shall be prepared for shipment in accordance with National Industrial Security Program Operating Manual (NISPOM) codifying 32 Code of Federal Regulation Part 117, NIPSOM Rule.



## Section E - Inspection and Acceptance

Note: All terms and conditions of Section E of the SeaPort NxG MAC are hereby fully and expressly incorporated into this Request for Offer (RFO) and resulting Task Order (TO) in addition to the following:

Cost Plus Fixed Fee (CPFF) Labor CLINs (6000 Series CLINs): The services to be furnished hereunder shall be inspected and accepted in accordance with ETXT.246-9512 Inspection and Acceptance.

Other Direct Costs (ODCs) CLINs (7000 Series CLINs): The material and travel to be furnished shall be inspected and accepted in accordance with ETXT.246-9512 Inspection and Acceptance.

Not Separately Priced (NSP) Data CLINs (8000 Series CLINs): The data to be furnished hereunder shall be inspected and accepted in accordance with Exhibit A, CDRLs.

NSP Contractor Acquired Property (CAP) CLINs (8000 Series CLINs): CAP shall be inspected and accepted in accordance with ETXT.246-9512 Inspection and Acceptance and Exhibit A, CDRLs.

### Additional Regulation or Supplemental Clauses Incorporated by Full Text

#### ETXT.246-9512 INSPECTION AND ACCEPTANCE (NAVAIR)

(Oct 2005)

(a) Inspection and acceptance of the supplies or services to be furnished hereunder shall be performed by the Contracting Officer's Representative (COR) as identified in GTXT.201-9501 Designation of Contracting Officer's Representative (COR) - ALT I.

(b) Acceptance of all Contract Line Items/Sub Line Items (CLINs/SLINs) shall be made by signature of the accepting authority on a DD Form 250 submitted through the WAWF system. Acceptance will only occur when the accepting authority is sure that inspections performed demonstrate compliance with contract requirements.

#### ETXT.246-9514 INSPECTION AND ACCEPTANCE OF TECHNICAL DATA AND INFORMATION (NAVAIR)

(Feb 1995)

Inspection and acceptance of technical data and information will be performed by the Procuring Contracting Officer (PCO) or his duly authorized representative. Inspection of technical data and information will be performed by ensuring successful completion of the requirements set forth in the DD Form 1423, Contract Data Requirements List (CDRL) and incorporation/resolution of Government review comments on the data items. Acceptance will be evidenced by execution of an unconditional DD Form 250, Material Inspection and Receiving Report, as appropriate, and/or upon receipt of a second endorsement acceptance by the PCO on the attachment to this contract entitled Attachment 06 - Data Item Transmittal/Acceptance/ Rejection Form. The attached form will not be used for high cost data such as drawings, specifications, and technical manuals.

### Overall Contract Inspection/Acceptance Locations

|      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 6001 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination</p> <p>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
|      | Inspection and Acceptance Location                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |

|      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 6002 | <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p>                                           |
| 6003 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| 6004 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| 6005 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p>                                                                 |

|                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|--------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                          | TBD, Contracting Officer's Representative<br>Email: TBD                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| Option Line Item<br>6101 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>6102 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>6103 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>6104 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV</p>                                                                                                                                                              |

|                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|--------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                          | <p>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p>                                                                                                                                                                                                                                                                                                                                  |
| Option Line Item<br>6105 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>6201 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>6202 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>6203 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p>                                                                                                                                                                                                                                                   |

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|                          | <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p>                                                                                                                                                                                                                                                |
| Option Line Item<br>6204 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>6205 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>6301 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>6302 | <p>Inspection and Acceptance Location</p> <p>Both</p>                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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|                          | <p>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p>                                                    |
| Option Line Item<br>6303 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>6304 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>6305 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |

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| <p>Option Line Item<br/>6401</p> | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| <p>Option Line Item<br/>6402</p> | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| <p>Option Line Item<br/>6403</p> | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| <p>Option Line Item<br/>6404</p> | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p>                                                                 |

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|                          | TBD, Contracting Officer's Representative<br>Email: TBD                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| Option Line Item<br>6405 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| 7001                     | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| 7002                     | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| 7003                     | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV</p>                                                                                                                                                              |



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|                          | <p>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p>                                                                                                                                                                                                                                                                                                                                  |
| 7004                     | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| 7005                     | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7101 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7102 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p>                                                                                                                                                                                                                                                   |

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|                          | <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p>                                                                                                                                                                                                                                                |
| Option Line Item<br>7103 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7104 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7105 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7201 | <p>Inspection and Acceptance Location</p> <p>Both</p>                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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|                          | <p>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p>                                                    |
| Option Line Item<br>7202 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7203 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7204 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |

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| <p>Option Line Item<br/>7205</p> | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| <p>Option Line Item<br/>7301</p> | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| <p>Option Line Item<br/>7302</p> | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| <p>Option Line Item<br/>7303</p> | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p>                                                                 |

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|                          | TBD, Contracting Officer's Representative<br>Email: TBD                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| Option Line Item<br>7304 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7305 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7401 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7402 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV</p>                                                                                                                                                              |

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|                          | <p>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p>                                                                                                                                                                                                                                                                                                                                  |
| Option Line Item<br>7403 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7404 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>7405 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| 8000                     | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p>                                                                                                                                                                                                                                                   |

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|                          | <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p>                                                                                                                                                                                                                                                |
| 8001                     | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>8100 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>8101 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>8200 | <p>Inspection and Acceptance Location</p> <p>Both</p>                                                                                                                                                                                                                                                                                                                                                                                                                                            |

|                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|--------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                          | <p>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p>                                                    |
| Option Line Item<br>8201 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>8300 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| Option Line Item<br>8301 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |



|                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|----------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p>Option Line Item<br/>8400</p> | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |
| <p>Option Line Item<br/>8401</p> | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Performance will be inspected in accordance with the criteria provided in the Contractor Surveillance Plan (CSP), located in Section J, Attachment 05.</p> <p>DoDAAC: N3555A<br/>CountryCode: USA</p> <p>NAVAL AIR WARFARE CTR AIRCRAFT DIV<br/>17134 WEBSTER FIELD ROAD, ST INIGOES MD 20684<br/>ST INIGOES, MD 20684<br/>UNITED STATES</p> <p>TBD, Contracting Officer's Representative<br/>Email: TBD</p> |

## Section F - Deliveries or Performance

Note: All terms and conditions of Section F of the SeaPort NxG MAC are hereby fully and expressly incorporated into this Request for Offer (RFO) and resulting Task Order (TO) in addition to the following:

### Overall Contract Delivery Period

Contractor  
Destination

| Line Item                | Delivery Schedule                                                 | Quantity | Address and POC |
|--------------------------|-------------------------------------------------------------------|----------|-----------------|
| 6001                     | Period of Performance<br>From<br>17 Nov 2026<br>To<br>16 Nov 2027 | 1 Lot    |                 |
| 6002                     | Period of Performance<br>From<br>17 Nov 2026<br>To<br>16 Nov 2027 | 1 Lot    |                 |
| 6003                     | Period of Performance<br>From<br>17 Nov 2026<br>To<br>16 Nov 2027 | 1 Lot    |                 |
| 6004                     | Period of Performance<br>From<br>17 Nov 2026<br>To<br>16 Nov 2027 | 1 Lot    |                 |
| 6005                     | Period of Performance<br>From<br>17 Nov 2026<br>To<br>16 Nov 2027 | 1 Lot    |                 |
| Option Line Item<br>6101 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot    |                 |
| Option Line Item<br>6102 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot    |                 |
| Option Line Item<br>6103 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot    |                 |

|                          |                                                                   |       |  |
|--------------------------|-------------------------------------------------------------------|-------|--|
| Option Line Item<br>6104 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot |  |
| Option Line Item<br>6105 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot |  |
| Option Line Item<br>6201 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |
| Option Line Item<br>6202 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |
| Option Line Item<br>6203 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |
| Option Line Item<br>6204 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |
| Option Line Item<br>6205 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |
| Option Line Item<br>6301 | Period of Performance<br>From<br>17 Nov 2029<br>To<br>16 Nov 2030 | 1 Lot |  |
| Option Line Item<br>6302 | Period of Performance<br>From<br>17 Nov 2029<br>To<br>16 Nov 2030 | 1 Lot |  |
| Option Line Item<br>6303 | Period of Performance<br>From<br>17 Nov 2029<br>To<br>16 Nov 2030 | 1 Lot |  |
|                          | Period of Performance<br>From                                     | 1 Lot |  |

|                          |                                                                   |       |  |
|--------------------------|-------------------------------------------------------------------|-------|--|
| Option Line Item<br>6304 | 17 Nov 2029<br>To<br>16 Nov 2030                                  |       |  |
| Option Line Item<br>6305 | Period of Performance<br>From<br>17 Nov 2029<br>To<br>16 Nov 2030 | 1 Lot |  |
| Option Line Item<br>6401 | Period of Performance<br>From<br>17 Nov 2030<br>To<br>16 Nov 2031 | 1 Lot |  |
| Option Line Item<br>6402 | Period of Performance<br>From<br>17 Nov 2030<br>To<br>16 Nov 2031 | 1 Lot |  |
| Option Line Item<br>6403 | Period of Performance<br>From<br>17 Nov 2030<br>To<br>16 Nov 2031 | 1 Lot |  |
| Option Line Item<br>6404 | Period of Performance<br>From<br>17 Nov 2030<br>To<br>16 Nov 2031 | 1 Lot |  |
| Option Line Item<br>6405 | Period of Performance<br>From<br>17 Nov 2030<br>To<br>16 Nov 2031 | 1 Lot |  |
| 7001                     | Period of Performance<br>From<br>17 Nov 2026<br>To<br>16 Nov 2027 | 1 Lot |  |
| 7002                     | Period of Performance<br>From<br>17 Nov 2026<br>To<br>16 Nov 2027 | 1 Lot |  |
| 7003                     | Period of Performance<br>From<br>17 Nov 2026<br>To<br>16 Nov 2027 | 1 Lot |  |
| 7004                     | Period of Performance<br>From<br>17 Nov 2026                      | 1 Lot |  |

|                          |                                                                   |       |  |
|--------------------------|-------------------------------------------------------------------|-------|--|
|                          | To<br>16 Nov 2027                                                 |       |  |
| 7005                     | Period of Performance<br>From<br>17 Nov 2026<br>To<br>16 Nov 2027 | 1 Lot |  |
| Option Line Item<br>7101 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot |  |
| Option Line Item<br>7102 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot |  |
| Option Line Item<br>7103 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot |  |
| Option Line Item<br>7104 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot |  |
| Option Line Item<br>7105 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot |  |
| Option Line Item<br>7201 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |
| Option Line Item<br>7202 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |
| Option Line Item<br>7203 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |
| Option Line Item<br>7204 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |

|                          |                                                                   |       |  |
|--------------------------|-------------------------------------------------------------------|-------|--|
| Option Line Item<br>7205 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |
| Option Line Item<br>7301 | Period of Performance<br>From<br>17 Nov 2029<br>To<br>16 Nov 2030 | 1 Lot |  |
| Option Line Item<br>7302 | Period of Performance<br>From<br>17 Nov 2029<br>To<br>16 Nov 2030 | 1 Lot |  |
| Option Line Item<br>7303 | Period of Performance<br>From<br>17 Nov 2029<br>To<br>16 Nov 2030 | 1 Lot |  |
| Option Line Item<br>7304 | Period of Performance<br>From<br>17 Nov 2029<br>To<br>16 Nov 2030 | 1 Lot |  |
| Option Line Item<br>7305 | Period of Performance<br>From<br>17 Nov 2029<br>To<br>16 Nov 2030 | 1 Lot |  |
| Option Line Item<br>7401 | Period of Performance<br>From<br>17 Nov 2030<br>To<br>16 Nov 2031 | 1 Lot |  |
| Option Line Item<br>7402 | Period of Performance<br>From<br>17 Nov 2030<br>To<br>16 Nov 2031 | 1 Lot |  |
| Option Line Item<br>7403 | Period of Performance<br>From<br>17 Nov 2030<br>To<br>16 Nov 2031 | 1 Lot |  |
| Option Line Item<br>7404 | Period of Performance<br>From<br>17 Nov 2030<br>To<br>16 Nov 2031 | 1 Lot |  |
|                          | Period of Performance<br>From                                     | 1 Lot |  |

|                          |                                                                   |       |  |
|--------------------------|-------------------------------------------------------------------|-------|--|
| Option Line Item<br>7405 | 17 Nov 2030<br>To<br>16 Nov 2031                                  |       |  |
| 8000                     | Period of Performance<br>From<br>17 Nov 2026<br>To<br>16 Nov 2027 | 1 Lot |  |
| 8001                     | Period of Performance<br>From<br>17 Nov 2026<br>To<br>16 Nov 2027 | 1 Lot |  |
| Option Line Item<br>8100 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot |  |
| Option Line Item<br>8101 | Period of Performance<br>From<br>17 Nov 2027<br>To<br>16 Nov 2028 | 1 Lot |  |
| Option Line Item<br>8200 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |
| Option Line Item<br>8201 | Period of Performance<br>From<br>17 Nov 2028<br>To<br>16 Nov 2029 | 1 Lot |  |
| Option Line Item<br>8300 | Period of Performance<br>From<br>17 Nov 2029<br>To<br>16 Nov 2030 | 1 Lot |  |
| Option Line Item<br>8301 | Period of Performance<br>From<br>17 Nov 2029<br>To<br>16 Nov 2030 | 1 Lot |  |
| Option Line Item<br>8400 | Period of Performance<br>From<br>17 Nov 2030<br>To<br>16 Nov 2031 | 1 Lot |  |
| Option Line Item<br>8401 | Period of Performance<br>From<br>17 Nov 2030                      | 1 Lot |  |

|  |                   |  |  |
|--|-------------------|--|--|
|  | To<br>16 Nov 2031 |  |  |
|--|-------------------|--|--|

**Additional Regulation or Supplemental Clauses Incorporated by Full Text**

**FTXT.247-9505 TECHNICAL DATA AND INFORMATION (NAVAIR)**

**(Feb 1995)**

Technical Data and Information shall be delivered in accordance with the requirements of the Contract Data Requirements List, DD Form 1423, Exhibit A, attached hereto, and the following:

(a) The contractor shall concurrently deliver technical data and information per DD Form 1423, Blocks 12 and 13 (date of first /subsequent submission) to all activities listed in Block 14 of the DD Form 1423 (distribution and addresses) for each item. Complete addresses for the abbreviations in Block 14 are shown in paragraph (g) below. Additionally, the technical data shall be delivered to the following cognizant codes, who are listed in Block 6 of the DD Form 1423.

(1) PCO, Code - Delivery of CDRLs to PCO is not required.

(2) ACO, Code - Delivery of CDRLs to ACO is not required.

(3) COR, Code as identified in GTXT.201-9501 Designation of Contracting Officer's Representative (COR) - Alt I.

(b) Partial delivery of data is not acceptable unless specifically authorized on the DD Form 1423, or unless approved in writing by the PCO.

(c) The Government review period provided on the DD Form 1423 for each item commences upon receipt of all required data by the technical activity designated in Block 6.

(d) A copy of all other correspondence addressed to the Contracting Officer relating to data item requirements (i.e., status of delivery) shall also be provided to the codes reflected above and the technical activity responsible for the data item per Block 6, if not one of the activities listed above.

(e) The PCO reserves the right to issue unilateral modifications to change the destination codes and addresses for all technical data and information at no additional cost to the Government.

(f) Unless otherwise specified in writing, rejected data items shall be resubmitted within thirty (30) days after receipt of notice of rejection.

(g) DD Form 1423, Block 14 Mailing Addresses: see DD Form, Block 16.



## Section G - Contract Administration Data

Note: All terms and conditions of Section G of the Seaport NxG MAC are hereby fully and expressly incorporated into this Request for Offer (RFO) and resulting Task Order (TO) in addition to the following:

### DFARS Clauses Incorporated by Reference

| Number       | Title                                 | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|---------------------------------------|----------------|----------------------|--------------------------|
| 252.201-7000 | Contracting Officer's Representative. | Dec 1991       |                      |                          |

### Additional Regulation or Supplemental Clauses Incorporated by Full Text

GTXT.201-9501 Alt I DESIGNATION OF CONTRACTING OFFICER'S REPRESENTATIVE (COR) (APR 2022) - ALT I (NAVAIR) (Apr 2022)

(a) The Contracting Officer has designated the following as an authorized Contracting Officer's Representatives (COR):

COR 1: TBD to perform the following functions, duties, and/or responsibilities:

- Inspection of Services.
- Inspection of Data Deliverables.
- Review of invoices in WAWF to ensure charges are reasonable for work.
- Provide technical direction to the Contractor through the issuance of Technical Direction Letters (TDLs) per HTXT.242-9502 TECHNICAL DIRECTION (variation).
- Additionally, the following specific duties are assigned to the COR from the GTXT.242-9511 CONTRACT ADMINISTRATION DATA (NAVAIR)(NOV 2017):
- FAR 42.302(a)(16) Ensure timely notification by the contractor of any anticipated overrun or underrun of the estimated cost under cost-reimbursement contracts.
- FAR 42.302(a)(30) When contractors request Government property-
- Evaluate the contractor's requests for Government property and for changes to existing Government property and provide appropriate recommendations to the contracting officer;
- Ensure required screening of Government property before acquisition by the contractor;
- Evaluate the use of Government property on a non-interference basis in accordance with the clause at 52.245-9, Use and Charges;
- Ensure payment by the contractor of any rental due; and
- Modify contracts to reflect the addition of Government-furnished property and ensure appropriate consideration.
- FAR 42.302(a)(38) Ensure contractor compliance with contractual quality assurance requirements.
- FAR 42.302(a)(39) Ensure contractor compliance with contractual safety requirements.
- FAR 42.302(a)(40) Perform engineering surveillance to assess compliance with contractual terms for schedule, cost, and technical performance in the areas of design, development, and prosecution.
- FAR 42.302(a)(41) valueate for adequacy and perform surveillance of contractor engineering efforts and management systems that relate to design, development, production, engineering changes, subcontractors, tests, management of engineering resources, reliability and maintainability, data control systems, configuration management, and independent research and development.
- FAR 42.302(a)(42) Review and evaluate for technical adequacy the contractor's logistics support, maintenance, and modification programs.
- FAR 42.302(a)(51) Consent to the placement of subcontracts.
- FAR 42302(a)(58) Ensure timely submission of required reports.
- FAR 42302(a)(67) Support the program, product, and project offices regarding program reviews, program status, program performance and actual or anticipated program problems.
- DFARS 242.302(a)(67) Also support program offices and buying activities in pre-contractual efforts leading to a solicitation or award.

COR 2: TBD to perform the following functions, duties, and/or responsibilities:

TBD at TO Award.

(b) The Contracting Officer has designated the following as an authorized Alternate Contracting Officer's Representatives (ACOR):

ACOR 1: TBD to perform the functions, duties, and/or responsibilities outlined below in the absence of COR Name.

ACOR 1 Functions, Duties, and/or Responsibilities: see the functions, duties, and/or other responsibilities outlined in paragraph (a) above.

(c) The effective period of the COR designation is the period of performance of this Task Order.

**GTXT.232-0001 PAYMENT INSTRUCTIONS (NAVAIR)**

**(May 2023)**

**For Government Use Only**

| Contract/Order Payment Clause                                                                                                                                                                                                                                                                                                         | Type of Payment Request                 | Supply | Service | Construction | Payment Office Allocation Method                                                                                                                                                                                                                                                                                                                                                     |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------|--------|---------|--------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 52.212-4 (Alt I), Contract Terms and Conditions - Commercial Products and Commercial Services; 52.216-7, Allowable Cost and Payment; 52.232-7, Payments Under Time-and-Materials and Labor-Hour Contracts                                                                                                                             | Cost Voucher                            | X      | X       | N/A          | Line item specific proration. If there is more than one ACRN within a deliverable contract line item, the funds will be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN on the line item billed.                                                                                                                                      |
| 52.232-1, Payments, 252.217-7007, Payments (vessel repair and alterations)                                                                                                                                                                                                                                                            | Navy Shipbuilding Invoice (Fixed Price) | X      | X       | N/A          | Line item specific by fiscal year. If there is more than one ACRN within a deliverable line or deliverable subline item the funds will be allocated using the oldest funds first. In the event of a deliverable line or deliverable subline item with two or more ACRNs with the same fiscal year, those amounts will be prorated to the available unliquidated funds for that year. |
| 52.232-1, Payments; 52.232-2, Payments Under Fixed-Price Research and Development Contracts; 52.232-3, Payments Under Personal Services Contracts; 52.232-4, Payments Under Transportation Contracts and Transportation-Related Services Contracts; and 52.232-6, Payments Under Communication Service Contracts With Common Carriers | Invoice                                 | X      | X       | N/A          | Line item specific proration. If there is more than one ACRN within a deliverable line item or deliverable subline item, the funds will be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN on the deliverable line or deliverable subline item for which payment is requested.                                                        |
|                                                                                                                                                                                                                                                                                                                                       |                                         |        |         |              |                                                                                                                                                                                                                                                                                                                                                                                      |

|                                                                                                                                                                             |                                                      |     |     |     |                                                                                                                                                                                                                                                                                                                                                                                      |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------|-----|-----|-----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 52.232-5, Payments Under Fixed-Price Construction Contracts                                                                                                                 | Construction Payment Invoice                         | N/A | N/A | X   | Line item specific by fiscal year. If there is more than one ACRN within a deliverable line or deliverable subline item the funds will be allocated using the oldest funds first. In the event of a deliverable line or deliverable subline item with two or more ACRNs with the same fiscal year, those amounts will be prorated to the available unliquidated funds for that year. |
| 52.232-16, Progress Payments (excluding contracts with multiple lot progress payments)                                                                                      | Progress Payment*                                    | X   | X   | N/A | Contract-wide proration. Funds shall be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN. Progress payments are considered contract level financing, and the "contract price" shall reflect the fixed-price portion of the contract per FAR 32.501-3.                                                                                  |
| 52.232-16, Progress Payments; 252.232-7018, Progress Payments-Multiple Lots                                                                                                 | Progress Payment*                                    | X   | X   | N/A | Lot-wide proration (applies to lots specifically identified in the contract). If there is more than one ACRN within a lot, the funds will be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN on the lot for which payment is requested.                                                                                               |
| 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services; 52.232-30, Installment Payments for Commercial Products and Commercial Services | Commercial Product and Commercial Service Financing* | X   | X   | N/A | Specified in approved payment. The contracting officer shall specify the amount to be paid and the account(s) to be charged for each payment approval in accordance with FAR 32.207(b)(2).                                                                                                                                                                                           |
|                                                                                                                                                                             |                                                      |     |     |     |                                                                                                                                                                                                                                                                                                                                                                                      |

|                                                                         |                             |   |   |     |                                                                                                                                                                                              |
|-------------------------------------------------------------------------|-----------------------------|---|---|-----|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 52.232-32, Performance-Based Payments                                   | Performance-Based Payments* | X | X | N/A | Specified in approved payment. The contracting officer shall specify the amount to be paid and the account (s) to be charged for each payment approval in accordance with FAR 32.1007(b)(2). |
| 252.232-7002, Progress Payments for Foreign Military Sales Acquisitions | Progress Payment*           | X | X | N/A | Allocate costs among line items and countries in a manner acceptable to the administrative contracting officer.                                                                              |

\*Liquidation of Financing Payments. Liquidation will be applied by the payment office against those ACRNS which are identified by the payment instructions for the delivery payment and in keeping with the liquidation provision of the applicable contract financing clause (i.e., progress payment, performance -based payment, or commercial product and commercial service financing).

**GTXT.242-9511 CONTRACT ADMINISTRATION DATA (NAVAIR)**

**(Nov 2017)**

(a) Contract Administration Office.

(1) Contract administration functions (see FAR 42.302(a) and DFARS 242.302(a)) are assigned to: See the ADMINISTERED BY Block on the face page of the contract, modification, or order.

(b) Special Instructions (see FAR 42.202(b) and (c)):

(1) The PCO & COR will perform all administrative functions listed in FAR 42.302, with the exception of the following four (4) functions which are hereby delegated to DCMA:

FAR 42.302(a)(5)

FAR 42.302(a)(9)

FAR 42.302(a)(11)

FAR 42.302(a)(12)

(2) The contract administration functions to be retained by the COR can be found in Section J, Attachment 07 "COR Designation Letter."

(c) Inquiries regarding payment should be referred to: MyInvoice through the Wide Area Workflow eBusiness Suite: <https://wawf.eb.mil/>.

## Section H - Special Contract Requirements

Note: All terms and conditions of Section H of the Seaport NxG MAC are hereby and fully expressly incorporated into this Request for Order (RFO) and resulting Task Order (TO) in addition to the following:

### HTXT.242-9502 TECHNICAL DIRECTION (NAVAIR) (VARIATION) (JULY 2024)

(a) Definition. Technical Direction Letters (TDLs) are a means of communication between the Contracting Officer's Representative (COR) and the contractor to answer technical questions, provide technical clarification, and give technical direction regarding the content of the Statement of Work (SOW) of a Contract, Order, or Agreement; herein after referred to as contract.

(i) "Technical Direction" means "clarification of contractual requirements or direction of a technical nature, within the context of the SOW of the contract."

(b) Scope. The Defense Federal Acquisition Regulation Supplement (DFARS) 201.602-2 states that the Contracting Officer may designate qualified personnel as a COR. In this capacity, the COR may provide Technical Direction to the contractor, so long as the Technical Direction does not make any commitment or change that affects price, quality, quantity, delivery, or other terms and conditions of the contract. This Technical Direction shall be provided consistent with the limitations specified below.

(c) Limitations. When necessary, Technical Direction concerning details of requirements set forth in the contract, shall be given through issuance of TDLs prepared by the COR subject to the following limitations.

(i) The TDL, and any subsequent amendments to the TDL, shall be in writing and signed by both the COR, and the Contracting Officer prior to issuance of the TDL to the contractor. Written TDLs are the only medium permitted for use when technical direction communication is required. Any other means of communication (including such things as Contractor Service Request Letters, Authorization Letters, or Material Budget Letters) are not permissible means of communicating technical direction during contract performance.

(ii) In the event of an urgent situation, the COR may issue the TDL directly to the contractor prior to obtaining the Contracting Officer's signature.

(iii) Each TDL issued is subject to the terms and conditions of the contract and shall not be used to assign new work, direct a change to the quality or quantity of supplies and/or services delivered, change the delivery date(s) or period of performance of the contract, or change any other conditions of the contract. TDLs shall only provide additional clarification and direction regarding technical issues. In the event of a conflict between a TDL and the contract, the contract shall take precedence.

(iv) The contractor shall track each TDL and shall be subject to FAR 52.232-22, Limitation of Funds clause at the TDL level. The contractor shall notify the Contracting Officer whenever it has reason to believe the costs it expects to incur under the TDL and the specific CLIN/INFOSLIN/ACRN (as funded) will exceed 75% of the total funded amount so far allotted to the specific TDL and CLIN/INFOSLIN/ACRN assigned. The notice shall state the estimated amount of additional funds required to continue performance for the period specified in the TDL. If, after notification, additional funds are not allotted, the Contractor shall immediately discontinue support of the specific TDL upon expense of applicable funds or completion of TDL assignment; whichever is first. The contractor is not obligated to continue performance under the TDL or otherwise incur costs in excess of the amount then allotted to the TDL by the Government. The Government is not obligated to reimburse the Contractor for any cost in excess of the total amount allotted by the Government for the performance of the TDL.

(v) Issuance of TDLs shall not incur an increase or decrease to the contract price, estimated contract amount (including fee), or contract funding, as applicable. Additionally, TDLs shall not provide clarification or direction of a technical nature that would require the use of existing funds on the contract beyond the period of performance or delivery date for which the funds were obligated.

(vi) TDLs shall provide specific Technical Direction to the contractor only for work specified in the SOW and previously negotiated in the contract. TDLs shall not require new contract deliverables that may cause the contractor to incur additional costs.

(vii) When, in the opinion of the contractor, a TDL calls for effort outside the terms and conditions of the contract or available funding, the contractor shall notify the Contracting Officer in writing, with a copy to the COR, within two (2) working days of having received the Technical Direction. The contractor shall undertake no performance to comply with the TDL until the matter has been resolved by the Contracting Officer through a contract modification or other appropriate action.

(viii) If the contractor undertakes work associated with a TDL that is considered to be outside the scope of the contract, the contractor does so at its own risk and is not entitled to recover any costs and fee or profit associated with the scope of effort.

### Additional Regulation or Supplemental Clauses Incorporated by Full Text

The following types of insurance are required in accordance with the clause entitled, FAR 52.228-7, "Insurance--Liability to Third Persons" and shall be maintained in the minimum amounts shown:

- (a) Comprehensive General Liability: \$200,000 per person and \$500,000 per accident for bodily injury.
- (b) Automobile Insurance: \$200,000 per person and \$500,000 per accident for bodily injury and \$500,000 per accident for property damage.
- (c) Standard Workman's Compensation and Employer's Liability Insurance (or, where maritime employment is involved, Longshoremen's and Harbor Worker's Compensation Insurance) in the minimum amount of \$100,000.
- (d) Aircraft public and passenger liability: \$0.00; not applicable because aircraft are not being used in connection with performing the Task Order.

**HTXT.232-9510 PAYMENT OF FIXED FEE (NAVAIR)**

**(Oct 2005)**

- (a) The fixed fee, as specified in Section B of this contract, subject to any adjustment required by other provisions of this contract, will be paid in installments. The fixed fee will be paid not more frequently than bi-weekly based on the allowable cost. The amount of each such installment shall be in the same ratio to the total fixed fee as the dollars per hour (based on the total fixed fee divided by the total level of effort in hours which is \$X.XX per hour for the entire Task Order. Payment shall be made in accordance with FAR Clauses 52.216-7, "Allowable Cost and Payment", and 52.216-8, "Fixed Fee".
- (b) In the event of termination of the work in accordance with the FAR Clause 52.232-22, "Limitation of Funds", the fixed fee shall be redetermined by mutual agreement equitably to reflect the reduction of the work performed. The amount by which such fixed fee is less than or exceeds payments previously made on account of fee, shall be paid to (or repaid by) the contractor.
- (c) The balance of the fixed fee shall be payable in accordance with other clauses of this contract.
- (d) For indefinite delivery type contracts the terms of this clause apply to each delivery/task order there under.

**HTXT.209-9510 ORGANIZATIONAL CONFLICTS OF INTEREST (NAVAIR)**

**(Feb 2025)**

- (a) Purpose. This requirement seeks to ensure that the contractor (1) does not obtain an unfair competitive advantage over other parties by virtue of its performance of this contract, and (2) is not biased because of its current or planned interests (financial, contractual, organizational or otherwise) that relate to the work under this contract.
- (b) Scope. The restrictions described herein shall apply to performance or participation by the contractor (as defined in paragraph (d) (7)) in the activities covered by this requirement.
  - (1) The restrictions set forth in paragraph (e) apply to supplies, services, and other performance rendered with respect to the suppliers and/or equipment listed in Attachment 08. The Task Order will specify to which suppliers and/or equipment subparagraph (e) restrictions apply.
  - (2) The financial, contractual, organizational and other interests of contractor personnel performing work under this contract shall be deemed to be the interests of the contractor for the purposes of determining the existence of an organizational conflict of interest. Any subcontractor that performs any work relative to this contract shall be subject to this requirement. The contractor agrees to place in each subcontract affected by these provisions the necessary language contained in this requirement.
  - (3) In performance of this contract, the contractor shall also comply with the mitigation plan provided as Attachment TBD at Task Order award or none to this contract.
- (c) Waiver. Any request for waiver pursuant to FAR 9.503 shall be submitted in writing to the Procuring Contracting Officer. The request for waiver shall set forth all relevant factors including proposed contractual safeguards or job procedures to mitigate conflicting roles that might produce an organizational conflict of interest. No waiver shall be granted by the Government with respect to prohibitions pursuant to access to proprietary data.
- (d) Definitions. For purposes of application of this requirement only, the following definitions are applicable:
  - (1) "System" includes system, major component, subassembly or subsystem, project, or item.
  - (2) "Nondevelopmental items" as defined in FAR 2.101.
  - (3) "Systems Engineering" (SE) includes, but is not limited to, the activities in FAR 9.505-1(b).

(4) "Technical direction" (TD) includes, but is not limited to, the activities in FAR 9.505-1(b).

(5) "Advisory and Assistance Services" (AAS) as defined in FAR 2.101.

(6) "Consultant services" as defined in FAR 31.205-33(a).

(7) "Contractor", for the purposes of this requirement, means the firm signing this contract, its subsidiaries and affiliates, joint ventures involving the firm, any entity with which the firm may hereafter merge or affiliate, and any other successor or assignee of the firm.

(8) "Affiliates," means officers or employees of the prime contractor and first tier subcontractors involved in the program and technical decision-making process concerning this contract.

(9) "Interest" means organizational or financial interest.

(10) "Weapons system supplier" means any prime contractor or first tier subcontractor engaged in, or having a known prospective interest in the development, production or analysis of any of the weapon systems, as well as any major component or subassembly of such system.

(e) Contracting restrictions.

[ X ] (1) To the extent the contractor provides systems engineering and/or technical direction for a system or commodity but does not have overall contractual responsibility for the development, the integration, assembly and checkout or the production of the system, the contractor shall not (i) be awarded a contract to supply the system or any of its major components or (ii) be a subcontractor or consultant to a supplier of the system or of its major components. The contractor agrees that it will not supply to the Department of Defense (either as a prime contractor or as a subcontractor) or act as consultant to a supplier of, any system, subsystem, or major component utilized for or in connection with any item or other matter that is (directly or indirectly) the subject of the systems engineering and/or technical direction or other services performed under this contract for a period of three (3) years after the date of completion of the contract. (FAR 9.505-1(a))

[ X ] (2) To the extent the contractor prepares and furnishes complete specifications covering nondevelopmental items to be used in a competitive acquisition, the contractor shall not be allowed to furnish these items either as a prime contractor or subcontractor. This rule applies to the initial production contract, for such items plus a specified time period or event. The contractor agrees to prepare complete specifications covering non-developmental items to be used in competitive acquisitions, and the contractor agrees not to be a supplier to the Department of Defense, subcontract supplier, or a consultant to a supplier of any system or subsystem for which complete specifications were prepared hereunder. The prohibition relative to being a supplier, a subcontract supplier, or a consultant to a supplier of these systems or their subsystems extends for a period of three (3) years after the terms of this contract. (FAR 9.505-2(a)(1))

[ X ] (3) To the extent the contractor prepares or assists in preparing a statement of work to be used in competitively acquiring a system or services or provides material leading directly, predictably and without delay to such a work statement, the contractor may not supply the system, major components thereof or the services unless the contractor is the sole source, or a participant in the design or development work, or more than one contractor has been involved in preparation of the work statement. The contractor agrees to prepare, support the preparation of or provide material leading directly, predictably and without delay to a work statement to be used in competitive acquisitions, and the contractor agrees not to be a supplier or consultant to a supplier of any services, systems or subsystems for which the contractor participated in preparing the work statement. The prohibition relative to being a supplier, a subcontract supplier, or a consultant to a supplier of any services, systems or subsystems extends for a period of three (3) years after the terms of this contract. (FAR 9.505-2(b)(1))

[ X ] (4) To the extent work to be performed under this contract requires evaluation of offers for products or services, a contract will not be awarded to a contractor that will evaluate its own offers for products or services, or those of a competitor, without proper safeguards to ensure objectivity to protect the Government's interests. Contractor agrees to the terms and conditions set forth in the statement of work that are established to ensure objectivity to protect the Government's interests. (FAR 9.505-3)

[ X ] (5) To the extent work to be performed under this contract requires access to proprietary data of other companies, the contractor must enter into agreements with such other companies which set forth procedures deemed adequate by those companies (i) to protect such data from unauthorized use or disclosure so long as it remains proprietary and (ii) to refrain from using the information for any other purpose other than that for which it was furnished. Evidence of such agreement(s) must be made available to the Procuring Contracting Officer upon request. The contractor shall restrict access to proprietary information to the minimum number of employees necessary for performance of this contract. Further, the contractor agrees that it will not utilize proprietary data obtained from such other companies in preparing proposals (solicited or unsolicited) to perform additional services or studies for the United States Government. The contractor agrees to execute agreements with companies furnishing proprietary data in connection with work performed under this contract, obligating the contractor to protect such data from unauthorized use or disclosure so long as such data

remains proprietary, and to furnish copies of such agreement to the Contracting Officer. Contractor further agrees that such proprietary data shall not be used in performing for the Department of Defense additional work in the same field as work performed under this contract if such additional work is procured competitively. (FAR 9.505)

[ X ] (6) Preparation of Statements of Work or Specifications. If the contractor under this contract assists substantially in the preparation of a statement of work or specifications, the contractor shall be ineligible to perform or participate in any capacity in any contractual effort (solicited or unsolicited) that is based on such statement of work or specifications. The contractor shall not incorporate its products or services in such statement of work or specifications unless so directed in writing by the Contracting Officer, in which case the restrictions in this subparagraph shall not apply. Contractor agrees that it will not supply to the Department of Defense (either as a prime contractor or as a subcontractor) or act as consultant to a supplier of, any system, subsystem or major component utilized for or in connection with any item or work statement prepared or other services performed or materials delivered under this contract, and is procured on a competitive basis, by the Department of Defense with three (3) years after completion of work under this contract. The provisions of this requirement shall not apply to any system, subsystem, or major component for which the contractor is the sole source of supply or which it participated in designing or developing. (FAR 9.505-4(b))

[ X ] (7) Advisory and Assistance Services (AAS). If the contractor provides AAS services as defined in paragraph (d) of this requirement, it shall be ineligible thereafter to participate in any capacity in Government contractual efforts (solicited or unsolicited) which stem directly from such work, and the contractor agrees not to perform similar work for prospective offerors with respect to any such contractual efforts. Furthermore, unless so directed in writing by the Contracting Officer, the contractor shall not perform any such work under this contract on any of its products or services, or the products or services of another firm for which the contractor performs similar work. Nothing in this subparagraph shall preclude the contractor from competing for follow-on contracts for AAS.

(f) Remedies. In the event the contractor fails to comply with the provisions of this requirement, such noncompliance shall be deemed a material breach of the provisions of this contract. If such noncompliance is the result of conflicting financial interest involving contractor personnel performing work under this contract, the Government may require the contractor to remove such personnel from performance of work under this contract. Further, the Government may elect to exercise its right to terminate for default in the event of such noncompliance. Nothing herein shall prevent the Government from electing any other appropriate remedies afforded by other provisions of this contract, or statute or regulation.

(g) Disclosure of Potential Conflicts of Interest. The contractor recognizes that during the term of this contract, conditions may change which may give rise to the appearance of a new conflict of interest. In such an event, the contractor shall disclose to the Government information concerning the new conflict of interest. The contractor shall provide, as a minimum, the following information:

- (1) a description of the new conflict of interest (e.g., additional weapons systems supplier(s), corporate restructuring, new first-tier subcontractor(s), new contract) and identity of parties involved;
- (2) a description of the work to be performed;
- (3) the dollar amount;
- (4) the period of performance; and
- (5) a description of the contractor's internal controls and planned actions, to avoid any potential organizational conflict of interest.

**HTXT.227-9511 DISCLOSURE, USE AND PROTECTION OF PROPRIETARY INFORMATION (Feb 2009)**  
**(NAVAIR)**

(a) During the performance of this contract, the Government may use an independent services contractor (ISC), who is neither an agent nor employee of the Government. The ISC may be used to conduct reviews, evaluations, or independent verification and validations of technical documents submitted to the Government during performance.

(b) The use of an ISC is solely for the convenience of the Government. The ISC has no obligation to the prime contractor. The prime contractor is required to provide full cooperation, working facilities and access to the ISC for the purposes stated in paragraph (a) above.

(c) Since the ISC is neither an employee nor agent of the Government, any findings, recommendations, analyses, or conclusions of such a contractor are not those of the Government.

(d) The prime contractor acknowledges that the Government has the right to use ISCs as stated in paragraph (a) above. It is possible that under such an arrangement the ISC may require access to or the use of information (other than restricted cost or pricing data), which is proprietary to the prime contractor.



(e) To protect any such proprietary information from disclosure or use, and to establish the respective rights and duties of both the ISC and prime contractor, the prime contractor agrees to enter into a direct agreement with any ISC as the Government requires. A properly executed copy (per FAR 9.505-4) of the agreement will be provided to the Procuring Contracting Officer.

**HTXT.216-9512 PAPERLESS CONTRACTING (NAVAIR)**

**(Jun 2009)**

(a) Orders and requests for proposals are hereby authorized to be issued by facsimile or by electronic commerce (including e-mail and paperless methods of delivery). Nothing in this contract should be read to prohibit these types of orders. In the event of a conflict with any other provision of this contract, this clause shall govern.

(b) To the extent the terms "written", "mailed", or "physically delivered" appear in other provisions of this contract, these terms are hereby defined to explicitly include electronic commerce, email, or paperless delivery methods.

**5152.225-5908 GOVERNMENT FURNISHED CONTRACTOR SUPPORT (CENTCOM)**

**(Jun 2015)**

The following is a summary of the type of support the Government will provide the contractor. Services will be provided to contractors at the same level as they are provided to military and DoD civilian personnel. In the event of any discrepancy between this summary and the description of services in the Statement of Work, this clause will take precedence. These services are only provided at the following locations: [Contracting Officer must enter the names of the operating locations of the contract that the requiring activity has properly coordinated with the respective Forward Operating Base (FOB) Mayor(s)]. When contractor employees are in transit, all checked blocks are considered authorized. NOTE: The services marked in this special clause must be consistent with information marked on the approved GFKSV form.

U.S. Citizens

☒ APO/FPO/MPO/DPO/Postal Services

☒

DFACs\*\*\*\*

☒

Mil Issue Equip

☐ Authorized Weapon\*\*\*\*\*

☒

Excess Baggage

☒

MILAIR (inter/intra theater)

☒

Billeting\*\*\*

☐ Fuel Authorized ☐ MWR

☒

CAAF\*

☒

Govt Furnished Meals\*\*\*\*

☒

Controlled Access Card (CAC)



Military Banking



Transportation



Installation Access Badge



Laundry ☐ Military Clothing

☐ Military Exchange ☐ None

☐ Embassy Services Kabul\*\*

Third-Country National (TCN) Employees



N/A ☐ DFACs\*\*\*\*\* ☐ Mil Issue Equip

☐ Authorized Weapon\*\*\*\*\* ☐ Excess Baggage

☐ MILAIR (intra theater) ☐ Billeting\*\*\*

☐ Fuel Authorized ☐ MWR ☐ CAAF\*

☐ Govt Furnished Meals\*\*\*\*\* ☐ Military Clothing

☐ Controlled Access Card (CAC) ☐ Military Banking

☐ Transportation ☐ Installation Access Badge

☐ Laundry ☐ All ☐ Military Exchange ☐ None

Local National (LN) Employees



N/A ☐ DFACs\*\*\*\*\* ☐ Mil Issue Equip

☐ Authorized Weapon\*\*\*\*\* ☐ Excess Baggage

☐ MILAIR (intra theater) ☐ Billeting\*\*\*

☐ Fuel Authorized ☐ MWR ☐ CAAF\*

☐ Govt Furnished Meals\*\*\*\*\* ☐ Military Clothing

☐ Controlled Access Card (CAC) ☐ Military Banking

☐ Transportation ☐ Installation Access Badge

☐ Laundry ☐ All ☐ Military Exchange ☐ None

\*CAAF is defined as Contractors Authorized to Accompany Forces.

\*\*Applies to US Embassy Life Support in Afghanistan only. See special note below regarding Embassy support.

\*\*\* Afghanistan Life Support. Due to drawdown of base life support facilities throughout the country, standards will be lowering to an "expeditionary" environment. Expeditionary standards will be base specific, and may include down grading from permanent housing (b-huts, hardened buildings) to temporary tents or other facilities.

\*\*\*\*Check the "DFAC" AND "Government Furnished Meals" boxes is the contractor will have access to the DFAC at no cost. "Government Furnished Meals" (GFM) is defined as meals at no cost to the contractor (e.g., MREs, or meals at the DFAS. If GFM is checked, "DFAC" must also be checked.

Due to drawdown efforts, DFACS may not be operational. Hot meals may drop from three per day to one or none per day. MREs may be substituted for DFAC-provided meals; however, contractors will receive the same meal standards as provided to military and DoD civilian personnel.

\*\*\*\*\*Military Banking indicates "approved use of military finance offices to either obtain an Eagle Cash Card or cash checks.

\*\*\*\*\*Authorized Weapon indicates this is a private security contract requirement and contractor employees, upon approval, will be authorized to carry a weapon. If the service is NOT a private security contract, the checking of this box does NOT authorize weapons for self-defense without the approval of the USFOR-A Commander in accordance with USFOR-A policy. After award, the contractor may request arming for self-defense off a U.S. installation to the Contracting Officer's Representative and in CAAMS.

SPECIAL NOTE - US Embassy Afghanistan Life Support: The type and amount of support that the U.S. Embassy Mission in Kabul, Afghanistan, provides to contractors, if any, must be coordinated in advance between the U.S. Mission and the contracting agency in accordance with Department of State Foreign Affairs Handbook, 2-FAH-2. Contractors are not authorized to deploy personnel requiring US Mission support prior to receiving clearance from the Contracting Officer.

SPECIAL NOTE ON MILAIR - MILAIR is allowed for the transportation of DoD contractor personnel (US, TCN, LN) as required by their contract and as approved in writing by the Contracting Officer or Contracting Officer Representative. Transportation is also allowed for contractor equipment required to perform the contract when that equipment travels with the contractor employee (e.g., special radio test equipment, when the contractor is responsible for radio testing or repair)

## Section I - Contract Clauses

Note: All applicable provisions and clauses of Section I of the Seaport NxG MAC apply to this Request for Offer (RFO) and resulting Task Order (TO) in addition to the following:

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                                                                  | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.204-10 | Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)                                                                             | Feb 2026       |                      |                          |
| 52.204-13 | System for Award Management-Maintenance. (Deviation 2026-O0038)                                                                                                        | Feb 2026       |                      |                          |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038) | Feb 2026       |                      |                          |
| 52.209-9  | Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)                                                                     | Feb 2026       |                      |                          |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)                                                                                 | Feb 2026       |                      |                          |
| 52.210-1  | Market Research. (Deviation 2026-O0038)                                                                                                                                | Feb 2026       |                      |                          |
| 52.215-23 | Limitations on Pass-Through Charges. (Deviation 2026-O0038)                                                                                                            | Feb 2026       |                      |                          |
| 52.222-41 | Service Contract Labor Standards. (Deviation 2026-O0038)                                                                                                               | Feb 2026       |                      |                          |
| 52.223-5  | Pollution Prevention and Right-to-Know Information.                                                                                                                    | May 2024       |                      |                          |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                                                                                                   | May 2024       |                      |                          |
| 52.229-12 | Tax on Certain Foreign Procurements.                                                                                                                                   | Feb 2021       |                      |                          |
| 52.232-22 | Limitation of Funds. (Deviation 2026-O0038)                                                                                                                            | Feb 2026       |                      |                          |
| 52.232-39 | Unenforceability of Unauthorized Obligations.                                                                                                                          | Jun 2013       |                      |                          |
| 52.233-3  | Protest after Award. (Deviation 2026-O0038)                                                                                                                            | Feb 2026       |                      |                          |
| 52.237-2  | Protection of Government Buildings, Equipment, and Vegetation.                                                                                                         | Apr 1984       |                      |                          |
| 52.240-91 | Security Prohibitions and Exclusions. (Deviation 2026-O0038)                                                                                                           | Feb 2026       |                      |                          |
| 52.240-92 | Security Requirements. (Deviation 2026-O0038)                                                                                                                          | Feb 2026       |                      |                          |
| 52.240-93 | Basic Safeguarding of Covered Contractor Information Systems. (Deviation 2026-O0038)                                                                                   | Feb 2026       |                      |                          |
| 52.242-3  | Penalties for Unallowable Costs. (Deviation 2026-O0038)                                                                                                                | Feb 2026       |                      |                          |
| 52.243-2  | Changes-Cost-Reimbursement. (Deviation 2026-O0038) (Alternate I)                                                                                                       | Feb 2026       | Alternate I          | Feb 2026                 |
| 52.244-6  | Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)                                                                                   | Feb 2026       |                      |                          |
| 52.246-26 | Reporting Nonconforming Items.                                                                                                                                         | Aug 2024       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                         | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|-----------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.203-7004 | Display of Hotline Posters.                                                                   | Jan 2023       |                      |                          |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting.                        | May 2024       |                      |                          |
| 252.205-7000 | Provision of Information to Cooperative Agreement Holders.                                    | Oct 2024       |                      |                          |
| 252.215-7002 | Cost Estimating System Requirements.                                                          | Jan 2025       |                      |                          |
| 252.222-7002 | Compliance with Local Labor Laws (Overseas).                                                  | Jun 1997       |                      |                          |
| 252.223-7006 | Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.              | Sep 2014       |                      |                          |
| 252.225-7004 | Report of Intended Performance Outside the United States and Canada - Submission after Award. | Jul 2024       |                      |                          |
| 252.225-7005 | Identification of Expenditures in the United States .                                         | Jun 2005       |                      |                          |
| 252.225-7056 | Prohibition Regarding Business Operations with the Maduro Regime.                             | Jan 2023       |                      |                          |
| 252.225-7060 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.               | Jun 2023       |                      |                          |
| 252.233-7001 | Choice of Law (Overseas).                                                                     | Jun 1997       |                      |                          |
| 252.242-7004 | Material Management and Accounting System.                                                    | Jan 2025       |                      |                          |
| 252.242-7005 | Contractor Business Systems.                                                                  | Jan 2025       |                      |                          |
| 252.242-7006 | Accounting System Administration.                                                             | Jan 2025       |                      |                          |
| 252.244-7998 | Contractor Purchasing System Administration. (DEVIATION 2026-O0015)                           | Feb 2026       | Deviation 2026-O0015 | Feb 2026                 |
| 252.245-7003 | Contractor Property Management System Administration                                          | Jan 2025       |                      |                          |
| 252.246-7007 | Contractor Counterfeit Electronic Part Detection and Avoidance System.                        | Jan 2023       |                      |                          |
| 252.246-7008 | Sources of Electronic Parts.                                                                  | Jan 2023       |                      |                          |
| 252.247-7023 | Transportation of Supplies by Sea.                                                            | Oct 2024       |                      |                          |

### FAR Clauses Incorporated by Full Text

**52.216-7 Allowable Cost and Payment. (Deviation 2026-O0038)**

**(Feb 2026)**

**ALLOWABLE COST AND PAYMENT (FEB 2026) (DEVIATION 2026-O0038)**

**(a) Invoicing.**

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the \_\_\_\_ [Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

**(b) Reimbursing costs.**

(1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only-

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for-

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made-

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) *Small business concerns.* A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)

(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) *General and Administrative expenses (final indirect cost pool)*. Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) *Overhead expenses (final indirect cost pool)*. Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) *Occupancy expenses (intermediate indirect cost pool)*. Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (*i.e.*, General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) *Subcontract information*. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p).

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (*e.g.*, trial balance, compilation, review, *etc.*).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)

(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) *Billing rates.* Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) *Quick-closeout procedures.* Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) *Audit.* At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be-

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

**52.217-8 Option to Extend Services.**

**(Nov 1999)**

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days prior to expiration of the Task Order.

(End of clause)

**52.217-9 Option to Extend the Term of the Contract.**

**(Mar 2000)**

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years and 6 months.

(End of clause)

**52.222-2 Payment for Overtime Premiums. (Deviation 2026-O0038)**

**(Feb 2026)**

Payment for Overtime Premiums (Feb 2026) (Deviation 2026-O0038)

(a) The use of overtime is authorized under this contract if the overtime premium cost does not exceed \$0.00 or the overtime premium is paid for work-

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

(3) To perform tests, industrial processes, laboratory procedures, loading or unloading of transportation conveyances, and operations in flight or afloat that are continuous in nature and cannot reasonably be interrupted or completed otherwise; or

(4) That will result in lower overall costs to the Government.



(b) Any request for estimated overtime premiums that exceeds the amount specified above must include all estimated overtime for contract completion and must-

(1) Identify the work unit; *e.g.*, department or section in which the requested overtime will be used, together with present workload, staffing, and other data of the affected unit sufficient to permit the Contracting Officer to evaluate the necessity for the overtime;

(2) Demonstrate the effect that denial of the request will have on the contract delivery or performance schedule;

(3) Identify the extent to which approval of overtime would affect the performance or payments in connection with other Government contracts, together with identification of each affected contract; and

(4) Provide reasons why the required work cannot be performed by using multishift operations or by employing additional personnel.

\* Insert either "zero" or the dollar amount agreed to during negotiations.

(End of clause)

## 52.222-42 Statement of Equivalent Rates for Federal Hires.

(May 2014)

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor ( 29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

| Employee Class                                       | Monetary Wage-Fringe Benefits |
|------------------------------------------------------|-------------------------------|
| Computer Based Training Specialist/Instructor, 15050 | GS-9, Step 1                  |
| Computer Systems Analyst II, 14102                   | GS-11, Step 1                 |
| Computer Systems Analyst III, 14103                  | GS-12, Step 1                 |
| Drafter/CAD Operator I, 30061                        | GS-4, Step 1                  |
| Drafter/CAD Operator II 30062                        | GS-5, Step 1                  |
| Drafter/CAD Operator III, 30063                      | GS-6, Step 1                  |
| Drafter/CAD Operator IV, 30064                       | GS-8, Step 1                  |
| Electronics Technician Maintenance II, 23182         | WG-9, Step 2                  |
|                                                      |                               |

|                                               |               |
|-----------------------------------------------|---------------|
| Electronics Technician Maintenance III, 23183 | WG-10, Step 2 |
| Engineering Technician II, 30082              | GS-4, Step 1  |
| Engineering Technician III, 30083             | GS-5, Step 1  |
| Engineering Technician IV, 30084              | GS-7, Step 1  |
| Engineering Technician V, 30085               | GS-9, Step 1  |
| Order Clerk II, 01192                         | GS-3, Step 1  |
| Technical Writer I, 30461                     | GS-7, Step 1  |
| Technical Writer II, 30462                    | GS-9, Step 1  |
| Warehouse Specialist, 21410                   | WG-5, Step 2  |

FRINGE BENEFIT RATE (FOR ALL LISTED EMPLOYEE CLASSES): 38.6% (FY26)

(End of clause)

|           |                                                                        |            |             |            |
|-----------|------------------------------------------------------------------------|------------|-------------|------------|
| 52.222-50 | Combating Trafficking in Persons. (Deviation 2026-O0038) (Alternate I) | (Feb 2026) | Alternate I | (Feb 2026) |
|-----------|------------------------------------------------------------------------|------------|-------------|------------|

*Alternate 1* (FEB 2026) (DEVIATION 2026-O0038). As prescribed in 22.1703-2(a)(2), substitute the following paragraph in place of paragraph (c)(1)(i) of the basic clause:

(c)(1)(i)(A) The United States Government's policy prohibiting trafficking in persons described in paragraph (b) of this clause; and

(B) The following directive(s) or notice(s) applicable to employees performing work at the contract place(s) of performance as indicated below:

| Document Title | Document may be obtained from: | Applies to performance in/at: |
|----------------|--------------------------------|-------------------------------|
| ==             | ==                             | ==                            |
|                |                                |                               |

[Contracting Officer must insert title of directive/notice; indicate the document is attached or provide source (such as website link) for obtaining document; and, indicate the contract performance location outside the United States to which the document applies.]

**52.244-2 Subcontracts.**

**(Jun 2020)**

Subcontracts (Jun 2020)

(a) *Definitions.* As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

*Subcontract* means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

If the subcontract is for labor and the subcontractor is not listed in Section J, Attachment 09 - List of Approved Subcontractors.

(e)

(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

See Attachment 09 - List of Approved Subcontractors (to be completed at time of Task Order award).

(End of clause)

#### **52.252-2 Clauses Incorporated by Reference.**

**(Feb 1998)**

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<http://www.acquisition.gov>.

(End of clause)

#### **52.252-4 Alterations in Contract.**

**(Apr 1984)**

ALTERATIONS IN CONTRACT (APR 1984)

Portions of this contract are altered as follows:

== == ==

(End of clause)

#### **DFARS Clauses Incorporated by Full Text**

#### **252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.**

**(Nov 2025)**

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: CMMC Level 2 (Self) Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)

(a) *Definition.* " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from DFARSPGI 225.372-1(2) For Navy contracts: Naval Criminal Investigative Service (NCIS), Code 21; telephone, DSN 288-9077 or commercial (202) 433-9077.

## Section J - List of Attachments

### Exhibits:

| <b>Id</b> | <b>Exhibit Name</b>     | <b>Exhibit Description</b> | <b>Reference Identifier</b> | <b>Date</b> | <b>Line Item</b> |
|-----------|-------------------------|----------------------------|-----------------------------|-------------|------------------|
| A         | CDRLs 26-R-3005 (SENSS) |                            | Exh A                       | 27 Jan 2026 |                  |

### Attachments:

| <b>Number</b> | <b>Attachment Name</b>                                    | <b>Attachment Description</b> | <b>Reference Identifier</b> | <b>Date</b> |
|---------------|-----------------------------------------------------------|-------------------------------|-----------------------------|-------------|
| 01            | Statement of Work (SOW) 26-R-3005 (SENSS)                 |                               | Att 01                      | 27 Jan 2026 |
| 02            | DD254 26-R-3005 (SENSS)                                   |                               | Att 02                      | 27 Jan 2026 |
| 03            | Authorized Key Personnel 26-R-3005 (SENSS)                |                               | Att 03                      | 27 Jan 2026 |
| 04            | CSWF Foundational Qualifications Matrix 26-R-3005 (SENSS) |                               | Att 04                      | 27 Jan 2026 |
| 05            | Contract Surveillance Plan (CSP) 26-R-3005 (SENSS)        |                               | Att 05                      | 27 Jan 2026 |
| 06            | Data Item Transmittal Form 26-R-3005 (SENSS)              |                               | Att 06                      | 27 Jan 2026 |
| 07            | COR Designation Letters 26-R-3005 (SENSS)                 |                               | Att 07                      | 27 Jan 2026 |
| 08            | OCI List 26-R-3005 (SENSS)                                |                               | Att 08                      | 27 Jan 2026 |
| 09            | List of Approved Subcontractors 26-R-3005 (SENSS)         |                               | Att 09                      | 27 Jan 2026 |
| 10            | Wage Determination 26-R-3005 (SENSS)                      |                               | Att 10                      | 27 Jan 2026 |



|    |                                                                                |  |        |                |
|----|--------------------------------------------------------------------------------|--|--------|----------------|
| 11 | TDL CDRL ATT<br>COR Only 26-R-<br>3005 (SENSS)                                 |  | Att 11 | 27 Jan<br>2026 |
| 12 | TDL CDRL ATT<br>COR TPOC 26-R-<br>3005 (SENSS)                                 |  | Att 12 | 27 Jan<br>2026 |
| 13 | SBPCD 26-R-3005<br>(SENSS)                                                     |  | Att 13 | 27 Jan<br>2026 |
| 14 | Cost Workbook 26-<br>R-3005 (SENSS)                                            |  | Att C1 | 27 Jan<br>2026 |
| 15 | Cost Reimbursable<br>Narrative 26-R-<br>3005 (SENSS)                           |  | Att C2 | 27 Jan<br>2026 |
| 16 | Fixed T&M Price<br>Narrative 26-R-<br>3005 (SENSS)                             |  | Att C3 | 27 Jan<br>2026 |
| 17 | Government Labor<br>Hours 26-R-3005<br>(SENSS)                                 |  | Att C4 | 27 Jan<br>2026 |
| 18 | Section L -<br>Instructions,<br>Conditions and<br>Notices 26-R-3005<br>(SENSS) |  | Att L1 | 27 Jan<br>2026 |
| 19 | Section M -<br>Evaluation Factors<br>for Award 26-R-<br>3005 (SENSS)           |  | Att M1 | 27 Jan<br>2026 |
| 20 | Key Personnel 26-<br>R-3005 (SENSS)                                            |  | Att P1 | 27 Jan<br>2026 |

## Section K - Representations, Certification, & Other Statements

Note: All applicable provisions and clauses of Section K of the Seaport NxG MAC apply to this Request for Offer (RFO) and the resultant Task Order (TO) in addition to the following:

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                           | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|-------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038) | Feb 2026       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                          | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.204-7008 | Compliance with Safeguarding Covered Defense Information Controls.                             | Oct 2016       |                      |                          |
| 252.225-7055 | Representation Regarding Business Operations with the Maduro Regime.                           | May 2022       |                      |                          |
| 252.225-7057 | Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.   | Aug 2022       |                      |                          |
| 252.225-7059 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation. | Jun 2023       |                      |                          |

### FAR Clauses Incorporated by Full Text

**52.209-7 Information Regarding Responsibility Matters. (Deviation 2026-00038) (Feb 2026)**  
INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION 2026-00038)

(a) *Definitions.* As used in this provision-

*Administrative proceeding* means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

*Federal contracts and grants with total value greater than \$10,000,000* means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

*Principal* means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in-
  - (A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

## 52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (Deviation 2026-O0038) (Feb 2026)

### VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (FEB 2026) (DEVIATION 2026-O0038)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification.* [Offeror shall check either (1) or (2).]

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

## 52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

### TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

*Foreign person* means any person other than a United States person.

*Specified Federal procurement payment* means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

*United States person* as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at [www.irs.gov/w14](http://www.irs.gov/w14). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

**52.230-1 Cost Accounting Standards Notices and Certification. (Deviation 2026-O0038) (Feb 2026)**

**COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION (FEB 2026) (DEVIATION 2026-O0038)**

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

**I. DISCLOSURE STATEMENT-COST ACCOUNTING PRACTICES AND CERTIFICATION**

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.205(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board ( 48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

(1) ☐ *Certificate of Concurrent Submission of Disclosure Statement.* The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows:

(i) Original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable; and

(ii) One copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: \_\_\_\_\_ Name and Address of Cognizant ACO or Federal Official Where Filed: \_\_\_\_\_

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

(2) ☐ *Certificate of Previously Submitted Disclosure Statement.* The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: \_\_\_\_\_ Name and Address of Cognizant ACO or Federal Official Where Filed: \_\_\_\_\_

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

(3) ☐ *Certificate of Monetary Exemption.* The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

(4) ☐ *Certificate of Interim Exemption.* The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under paragraph (c)(1) or (c)(2) of part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

*Caution:* Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

## II. Cost Accounting Standards-Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

☐ The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

*Caution:* An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

## III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with paragraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

|                              |                             |
|------------------------------|-----------------------------|
| <input type="checkbox"/> Yes | <input type="checkbox"/> No |
|------------------------------|-----------------------------|

(End of provision)

## 52.230-7 Proposal Disclosure-Cost Accounting Practice Changes.

(Apr 2005)

### PROPOSAL DISCLOSURE-COST ACCOUNTING PRACTICE CHANGES (APR 2005)

The offeror shall check "yes" below if the contract award will result in a required or unilateral change in cost accounting practice, including unilateral changes requested to be desirable changes.

☐ Yes ☐ No

If the offeror checked "Yes" above, the offeror shall-

(1) Prepare the price proposal in response to the solicitation using the changed practice for the period of performance for which the practice will be used; and

(2) Submit a description of the changed cost accounting practice to the Contracting Officer and the Cognizant Federal Agency Official as pricing support for the proposal.

(End of provision)

## DFARS Clauses Incorporated by Full Text

### 252.204-7017 **Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.** (May 2021)

#### PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

## Additional Regulation or Supplemental Clauses Incorporated by Full Text

### KTXT.209-9511 **CONFLICT OF INTEREST REPRESENTATION (NAVAIR)** (Feb 2025)

(a) This solicitation contains conflict of interest disclosure requirements to maintain the integrity of the source selection.

(1) Subparts 9.5 and 3.1 of the Federal Acquisition Regulation (FAR) prohibit organizational and personal conflicts of interest in Government procurements and establish the following principle: "Government business shall be conducted in a manner above reproach. . . . The general rule is to avoid strictly any conflict of interest or even the appearance of a conflict of interest in Government contractor relationships." FAR 3.101-1.

(2) Actual or potential conflicts of interest may arise, among other circumstances, when an Offeror has or may have unequal access to nonpublic information relevant to the solicitation or when a current or former Government employee may be negotiating for employment or be employed by an Offeror or any of an Offeror's subcontractors, partners, or affiliates. Unequal access may occur through communications (e.g., verbal, written, or electronic means) with current or former Government employees or through current or previous contracts that the Offeror or its subcontractors, partners, or affiliates have or had with the Government.

(b) Conflicts of Interest Prior to the Receipt of Proposals. Prior to and commensurate with the due date for receipt of proposals, the offeror shall comply as follows. Consistent with FAR Subparts 9.5 and 3.1 and as applicable to this solicitation, if the Offeror identifies for itself (or any of its subcontractors, partners, or affiliates); or has information that any other Offeror/potential Offeror has or may have an actual or potential conflict of interest, the Offeror shall check the appropriate box(es) below and shall include the supplemental information required per paragraph (d) of this text. Otherwise, the Offeror must affirmatively represent that no such actual or potential conflicts of interest are known or should have been known commensurate with the due date for receipt of proposals.

☐ Actual or potential conflicts of interest for the Offeror are being disclosed; and/or

☐ Actual or potential conflicts of interest for another Offeror/potential Offeror are being disclosed; or

☐ There are no actual or potential conflicts of interest to disclose.

(c) Conflicts of Interest After the Receipt of Proposals. After the due date for receipt of proposals, the offeror shall comply as follows. Consistent with FAR Subparts 9.5 and 3.1 and as applicable to this solicitation, if the offeror identifies for itself (or any of its subcontractors, partners, or affiliates); or has information that any other Offeror/potential Offeror has or may have an actual or potential conflict of interest, the Offeror shall within 3 business days of conflict identification provide the Contracting Officer an updated representation by checking the appropriate box(es) below and shall include the supplemental information required per paragraph (d) of this text.

☐ Actual or potential conflicts of interest for the Offeror are being disclosed; and/or

☐ Actual or potential conflicts of interest for another Offeror/potential Offeror are being disclosed

(d) If the Offeror represents that there are actual or potential conflicts of interest pursuant to either paragraph (b) or paragraph (c), see LTXT-209-9512 for additional requirements.

(e) The Offeror's compliance with the representation requirements of paragraphs (b) and (c) will be reviewed as part of the Contracting Officer's responsibility determination and will not be considered as part of the evaluation conducted per Section M. If the Contracting Officer determines that the Offeror has not complied with the above representation requirements, then the Offeror may be found to be not responsible and therefore ineligible for award in accordance with the best interests of the Government.



## Section L - Instructions, Conditions, & Notices to Offerors or Quoters

See Section J - Attachment L1 Instructions, Conditions & Notices

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                            | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|--------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.204-7  | System for Award Management-Registration. (Deviation 2026-O0038)                                 | Feb 2026       |                      |                          |
| 52.215-22 | Limitations on Pass-Through Charges-Identification of Subcontract Effort. (Deviation 2026-O0038) | Feb 2026       |                      |                          |
| 52.233-2  | Service of Protest. (Deviation 2026-O0038)                                                       | Feb 2026       |                      |                          |
| 52.237-1  | Site Visit.                                                                                      | Apr 1984       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                 | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|-----------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.204-7019 | Notice of NIST SP 800-171 DoD Assessment Requirements.                | Nov 2023       |                      |                          |
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System.            | Mar 2023       |                      |                          |
| 252.215-7013 | Supplies and Services Provided by Nontraditional Defense Contractors. | Jan 2023       |                      |                          |
| 252.225-7003 | Report of Intended Performance Outside the United States              | Oct 2025       |                      |                          |

### FAR Clauses Incorporated by Full Text

**52.211-14 Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use. (Apr 2008)**

NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be ☒ DX rated order; ☐ DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation. [Contracting Officer check appropriate box.]

(End of provision)

**52.216-1 Type of Contract. (Deviation 2026-O0038) (Feb 2026)**

Type of Contract (Feb 2026) (Deviation 2026-O0038)

The Government contemplates award of a Cost Plus Fixed Fee Task Order resulting from this solicitation.

(End of provision)

**52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)**

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<http://www.acquisition.gov>

(End of provision)

**52.252-3 Alterations in Solicitation.**

**(Apr 1984)**

**ALTERATIONS IN SOLICITATION (APR 1984)**

Portions of this solicitation are altered as follows:

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(End of clause)

**52.252-5 Authorized Deviations in Provisions.**

**(Nov 2020)**

**AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)**

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any \_\_\_\_\_[insert regulation name](48 CFR Chapter \_\_\_\_\_) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

**DFARS Clauses Incorporated by Full Text**

**252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.**

**(Nov 2025)**

**NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)**

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: CMMC Level 2 (Self Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)). This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

**252.215-7008 Only One Offer.**

**(Dec 2022)**

**ONLY ONE OFFER (DEC 2022)**

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable \_\_\_\_ [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

#### **Additional Regulation or Supplemental Clauses Incorporated by Full Text**

**LTXT.233-9500 AUTHORIZED PROTEST/APPEAL FILED WITH THE NAVAL AIR SYSTEMS COMMAND (NAVAIR) (Feb 2025)**

(a) Authorized agency protests/appeals will be processed in accordance with the procedures established at FAR 33.103. Authorized protests to the Naval Air Systems Command shall be filed with the Contracting Officer whose name and address are shown in FAR Clause 52.233-2, "Service of Protest" of this solicitation.

(b) In accordance with FAR 16.505(a)(10)(i)-(ii), agency protests/appeals of task/delivery orders under multiple award contracts are only authorized on the grounds that the task/delivery order increases the scope, period, or maximum value of the contract and the order is not in excess of the threshold set forth at FAR 16.505(a)(10)(i)(B)(2).

(c) The protester may request an independent review of the Contracting Officer's protest decision by filing a written appeal with:

The Chief of the Contracting Office:

Dawn B. Adamo, Code A2 ( dawn.b.adamo.civ@us.navy.mil)

21983 Bundy Road, Bldg 441

Patuxent River, MD 20670

(d) The appeal must be received by the Chief of the Contracting Office within 10 calendar days after the issuance of the Contracting Officer's protest decision. (In the computation of the 10 calendar day period, the day the Contracting Officer's protest decision is issued is not included.)

The appeal shall include the following content:

(1) the name, mailing address, telephone numbers and email address of the appellant;

(2) the solicitation or contract number;

(3) a detailed statement of the factual grounds for the appeal, to include a description of resulting prejudice to the appellant;

(4) copies of relevant documents;

- (5) a request for an independent review by the Chief of the Contracting Office;
- (6) a statement as to the form of relief requested; and,
- (7) all information establishing the timeliness of the appeal.

Appeals that do not address each of the seven (7) content elements will be denied as facially deficient in complying with minimum content requirements.

(e) Protestors requesting an independent review of the Contracting Officer's protest decision shall notify the Contracting Officer in writing that an appeal has been filed with the Chief of the Contracting Office within one day of submitting the appeal.

**LTXT.209-9512 CONFLICT OF INTEREST REQUIREMENTS (NAVAIR)**

**(Feb 2025)**

(a) Any time the Offeror represents that there is an actual or potential conflict of interest per KTXT.209-9511 either for itself (or any of its subcontractors, partners, or affiliates) or other Offerors or potential Offerors, the Offeror shall submit information detailing the actual or potential conflict. There is no page limitation on this information.

(b) Any time the Offeror represents that there is an actual or potential conflict of interest for itself (or any of its subcontractors, partners, or affiliates) per KTXT.209-9511, Conflict of Interest Representation, the Offeror shall also submit a mitigation plan. The mitigation plan shall, at a minimum, identify the conflicted party/parties, provide salient facts, provide an analysis of the actual or potential conflict of interest, and recommend an approach to neutralize, mitigate, or avoid the actual or potential conflict. There is no page limitation on the conflict of interest mitigation plan.

(c) The actual or potential conflict of interest and the Offeror's proposed mitigation plan, if applicable, will be reviewed as part of the Contracting Officer's responsibility determination and will not be considered as part of the evaluation conducted per Section M. If the Contracting Officer determines that the conflict of interest cannot be neutralized, mitigated, or avoided such that the integrity of the procurement is maintained, then the conflicted Offeror may be deemed ineligible for award.

(d) The Offeror's mitigation plan may be submitted at any time prior to the due date for receipt of proposals and, if not provided in advance, shall be submitted no later than the due date for receipt of proposals. If the Offeror provides an updated KTXT.209-9511 representation after the due date for receipt of proposals, the Offeror's mitigation plan shall be submitted concurrently with the submission of the updated representation.

**LTXT.209-9513 ORGANIZATIONAL CONFLICT OF INTEREST INSTRUCTIONS (NAVAIR)**

**(Feb 2025)**

(a) In accordance with FAR 9.507-1, in the Contracting Officer's judgment, there is potential for an organization conflict of interest to arise during execution of the work scope under this solicitation for the successful Offeror and/or any subcontractors, partners or affiliates: (1) who because of activities or relationships may be unable to render impartial assistance or advice to the Government, or (2) whose objectivity in performing the contemplated contract work might otherwise be impaired, or (3) who will gain an unfair competitive advantage in regards to this requirement.

(b) This solicitation therefore contains specific terms in Section H entitled, "NAVAIR HTXT.209-9510 Organizational Conflicts of Interest," which will appear in the awarded contract. The Contracting Officer has indicated the nature of the potential conflict that may arise during contract execution by checking the applicable block/s under subparagraph (e) of NAVAIR HTXT.209.9510.

(c) The Offeror's proposal shall include a plan to implement and comply with the requirements of NAVAIR HTXT.209-9510. The plan shall recommend additional means, if any, over and above the restriction set forth in the checked block/s of subparagraph (e) of NAVAIR HTXT209.9510 to further neutralize, mitigate, or avoid the identified potential conflict of interest. There is no page limitation on the conflict of interest plan submission.

(d) If the Contracting Officer determines the Offeror will have a conflict of interest during contract execution and determines it cannot be neutralized, mitigated, or avoided during contract execution, then the Offeror may be deemed ineligible for award. If the mitigation plan is deemed acceptable by the Contracting Officer, it will be incorporated into the contract awarded pursuant to this solicitation.

(e) The Offeror's plan may be submitted at any time prior to the due date for receipt of proposals and, if not provided in advance, shall be submitted no later than the due date for receipt of proposals.

## Section M - Evaluation Factors for Award

See Section J - Attachment M1 Evaluation Factors for Award

### FAR Clauses Incorporated by Reference

| Number   | Title                                         | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|----------|-----------------------------------------------|----------------|-------------------------|--------------------------------|
| 52.217-5 | Evaluation of Options. (Deviation 2026-O0038) | Feb 2026       |                         |                                |